The Federated Republic

CONSTITUTION

177 provisions · 20 articles
thefederatedrepublic.org

Article I — Individual Sovereignty and Rights

§1.1 — Right to Courts and Legal Remedy

Every person may seek legal remedy for any violation of their rights under this Constitution, whether by act or omission, before an independent and impartial court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not make the right to a remedy illusory.

§1.2 — Individual Sovereignty Floor

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favor of individual liberty; government bears the burden of demonstrating constitutional authority.

§1.3 — Prohibition of Torture and Cruel Treatment

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person, wherever located, may be subjected to such treatment by an agent or officer of the Republic, nor by any person acting at the direction or with the acquiescence of the Republic.

§1.4 — Prohibition of Slavery and Forced Labor

Slavery, involuntary servitude, and forced labor are absolutely prohibited. Lawful criminal sentences, jury service, military conscription, and civil emergency duties required by law do not constitute forced labor. Labor for the benefit of a private party requires the person's consent.

§1.5 — Civil and Political Liberties

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly only as necessary for public order and without viewpoint discrimination. No government may compel expression, or suppress it directly or through intermediaries. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others.

§1.6 — Equality and Non-Discrimination

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status. A distinction based on a listed characteristic requires compelling justification, except reasonable age standards and economic distinctions extending assistance to persons of lesser means. Other distinctions must be rationally related to a legitimate governmental purpose.

§1.8 — Privacy, Property, and Security of the Home

Every person holds the right to privacy and security in their person, home, communications, and data, and the right to own property. Government may not enter a home, or search, surveil, or collect a person, communication, or data, without consent or prior independent judicial authorization on specific, articulable grounds. Encryption is lawful and may not be prohibited. Property may be taken for public use only upon just compensation determined independently.

§1.9 — Democratic Participation

Every citizen, subject to constitutional eligibility requirements, has the right to vote, stand for office, participate in democratic processes, and have their vote counted. No governmental action whose purpose or substantial effect suppresses or reduces access to the franchise is valid. The Republic shall make voting broadly accessible but may not compel voting.

§1.10 — Right to Bear Arms

Every person holds the right to keep and bear arms for lawful purposes, including self-defense. The Legislature and States may regulate the licensing, safety, type, transfer, and carry of arms, provided lawful ownership for self-defense remains available.

§1.11 — Habeas Corpus

Every person detained by public authority has the right to challenge that detention before an independent and impartial court. The detaining authority must produce the person and justify detention within the period established by statute, not to exceed 72 hours. No court may decline to hear an application for habeas corpus.

§1.12 — Rights of the Accused and Fair Trial

Every person accused of a criminal offense has the right to prompt notice of the charges; counsel, at public expense if unable to afford representation; adequate time and means to prepare a defense; examination of witnesses; silence without adverse inference; and a speedy trial. No person may receive a greater penalty solely for exercising the right to trial. Bail may be imposed only as reasonably necessary to ensure appearance or protect public safety and may not be punitive. Where systematic or automated methodology generates evidence, the accused has the right to examine that methodology in full.

§1.13 — Right to a Public Trial

Every person accused of a criminal offense has the right to a public trial before an independent and impartial court. Proceedings may be closed only to the minimum extent necessary to protect a compelling interest identified by the court, with the grounds and expected duration published to the NRS. Sealing may not be indefinite. No record may remain sealed beyond 10 years from final judgment unless a court extends it once, by up to five years, on published findings of continuing necessity; the NRS Panel then publishes the record automatically.

§1.14 — Freedom from Retroactive Criminal Law

No person may be convicted for conduct that was not criminal when committed, and no criminal law may otherwise be applied retroactively to the disadvantage of the accused.

§1.15 — Double Jeopardy

No person may be tried or punished twice for the same offense following final acquittal or conviction. Offenses are the same where they arise from the same conduct and the later charge requires no element distinct from the earlier charge. A State and the Republic may each prosecute the same conduct, but sentences run concurrently and only the greater term is served, with time served credited to both.

§1.15.a — Conduct Lawful in Another Jurisdiction

No State or Territory may impose criminal or civil liability on a person for conduct that was lawful where it occurred in another State or Territory, or for assisting such conduct or providing information about it.

§1.18 — Environmental Obligations

Government may not cause or systematically permit material environmental harm to persons or communities. The Legislature shall establish environmental protections. Government shall take reasonable measures proportionate to known or identifiable harms; this provision does not guarantee a particular environmental outcome.

§1.19 — Emergency Derogation

No emergency suspends the Individual Sovereignty Floor in full. Rights other than those protected by §1.19.a may be temporarily derogated only upon a declaration stating the emergency, rights affected, scope, and duration, published immediately to the NRS. Either executive may issue a declaration within their domain for no more than 14 days. Continuation beyond 14 days requires a statute with a fixed expiration date, which may not be extended or renewed.

All emergency measures lapse automatically with the declaration. Judicial review remains available. Each declaration shall receive independent judicial review within 48 hours of publication. A substantially similar derogation may not be declared within 60 days after expiry; thereafter, re-declaration requires 2/3 of both chambers.

The three Monitors retain full constitutional authority throughout any emergency.

§1.19.a — Non-Derogable Rights

These six rights are absolute: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.11); the right to a public trial (§1.13); no retroactive punishment (§1.14); and non-refoulement (§1.21). No emergency measure may be applied in a discriminatory manner on the basis of race, ethnicity, religion, national origin, sexual orientation, or gender identity; any such application is void.

§1.20 — Right to Seek Asylum

Every person who reaches the Republic's jurisdiction has the right to claim asylum and to an independent determination of that claim under §6.3. Manner of entry does not affect this right. An asylum seeker is an Inhabitant from the date of claim and holds all rights under this Article.

§1.21 — Non-Refoulement

No person, wherever located, may be returned, expelled, or extradited by the Republic, or by anyone acting at its direction or with its acquiescence, to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the receiving government.

Article II — The Dual Executive

§2.1 — The Legat Consul — Domain and Term

To hold the office of Legat Consul, a person must have been a citizen for at least 7 years at the time of taking office. The Legat Consul holds authority over military command, force employment, foreign affairs, external intelligence (§2.3), trade agreements (§2.4), and indigenous nation relations (Article XVI). Operational decisions within this domain belong to the Legat Consul. The Legat Consul serves a four-year term. No person may serve more than 12 years as Legat Consul. A person who serves any portion of a term, by election or succession, may not seek election at the next election for that office. Upon term expiration, all authority transfers immediately to the incoming Legat Consul.

§2.2 — Military Authorization Framework

The Legat Consul may use military force in immediate response to an active or imminent attack on Republic territory, citizens abroad, or treaty allies. Beyond immediate response, military force requires legislative authorization. The Legat Consul shall notify both chambers and the Civic Consul within 24 hours of any use of force. Legislative authorization expires unless affirmatively renewed at intervals defined by statute, not exceeding 12 months; expiration requires cessation of operations. Operations must state and serve a purpose authorized by §14.1.

§2.3 — Consular Intelligence

The Legat Consul directs external intelligence. No intelligence operation against Republic citizens within Republic territory may be conducted on the Legat Consul's authority; such operations require independent judicial authorization.

§2.3.a — Legat Consul Legislative Veto

The Legat Consul may veto legislation raising a genuine constitutional concern within the security domain — military operations, external intelligence, treaty obligations, or border security — by returning the bill within 10 business days of final passage with written grounds. The veto may be used once per bill; a bill repassed in a subsequent session proceeds without Legat Consul veto. Either Speaker may request an EM domain assessment. The Senate may override by 2/3 during that session; absent override, the bill lapses.

§2.4 — Legat Consul International Agreements

The Legat Consul negotiates and concludes treaties and trade agreements, subject to §3.6. The Legat Consul shall consult the Civic Consul on trade and indigenous agreements bearing on domestic interests; the Civic Consul's response is advisory.

§2.4.a — Domain Officers

The Legat Consul may appoint domain officers to exercise defined authority. Officers are nominated from the qualified pool (§9.8) and confirmed by the Senate. Statute defines offices, qualifications, acting service, and administration, but may not transfer, enlarge, or diminish the Legat Consul's constitutional authority. The Legat Consul may dismiss a domain officer; the Senate may remove one by majority of full seated membership.

§2.5 — The Civic Consul — Domain and Term

(1) The Civic Consul holds residual executive authority over functions not enumerated to the Legat Consul.

(2) No person may serve more than 12 years as Civic Consul. A person leaving the office may not serve again until one full Assembly electoral cycle passes.

(3) The Civic Consul's domestic authority includes domestic policy, regulatory frameworks, civic-domain budget preparation (§12.2), civil service, and social state administration (Article XII).

(4) The Civic Consul may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to Article I and renewable by Assembly approval at intervals defined by statute (default 30 days). The Legat Consul has no authority in domestic emergencies except assistance under §2.14.b.

(5) The Civic Consul has the right to be informed on Legat domain matters creating domestic fiscal obligations or bearing on domestic interests. No classification or domain assertion may withhold such information.

(6) The Civic Consul appoints ministers to lead the civic domain, who serve at the Civic Consul's pleasure without confirmation. Portfolios are defined by statute. Upon a change of Consul, outgoing ministers remain in caretaker service to maintain existing policy until successors are appointed.

§2.6 — Constructive Vote of No Confidence

(1) The Civic Consul is accountable to the Assembly and may be removed only by a constructive vote of no confidence that simultaneously elects a named successor by absolute majority of the full seated Assembly. A vote not electing a successor has no effect. The vote is a political act not subject to judicial review.

(2) Only a serving Assembly member may be elected Civic Consul. Upon election, the Assembly seat becomes vacant. While serving, the Civic Consul may sit, speak, and be held to account in the Assembly but has no legislative vote and does not count toward quorum or voting thresholds.

(3) The Civic Consul serves until removal, resignation, or exhaustion of the service limit. Leaving office does not restore the vacated Assembly seat.

(4) An Acting Civic Consul is not removable under this section.

§2.6.a — Government Formation

(1) The Assembly elects the Civic Consul by absolute majority within the statutory period following a vacancy (constitutional default: 21 days).

(2) If the Assembly does not elect within that period, the Assembly Speaker becomes Acting Civic Consul by constitutional operation, with authority limited to maintaining existing policy. If there is no sitting Speaker, the most senior Assembly member by continuous service acts; ties are resolved by age.

(3) Bills passed during acting service are presented to the Acting Civic Consul, who may not exercise the §2.7 veto but may issue a reconsideration notice. The notice pauses the review period for 10 business days, during which the Assembly may withdraw the bill by simple majority.

(4) The Acting Civic Consul administers a nominating ballot of the Assembly. The ballot requires no quorum. The candidates receiving the most votes advance, being no fewer than two and no more than four; ties causing more than four to advance are resolved by continuous service, then age.

(5) The Elections Panel administers a national ranked-choice election among the advancing candidates within the statutory period (constitutional default: 45 days; absolute maximum: 90 days from the nominating ballot).

(6) The winner becomes Civic Consul; acting service ends upon installation.

(7) Before the national election begins, the Assembly may elect a Civic Consul by absolute majority, terminating the fallback. Once the national election begins, it proceeds to conclusion.

§2.7 — Civic Consul Legislative Instruments

The Civic Consul may, within 10 business days of final passage, return a bill with written grounds. The bill is suspended for one month, during which the Senate may override by 2/3. If not overridden, the bill returns to the Legislature and must pass both chambers again; upon repassage it is not subject to another Civic Consul veto.

Within the review period, the Civic Consul may issue a reconsideration notice identifying provisions for revision or deletion. The Assembly Speaker may pause the review period for up to 10 business days, during which the Assembly may withdraw the bill by simple majority. If not withdrawn, the review period resumes. A reconsideration notice may be issued once per bill and is unavailable for emergency legislation.

Both Consuls review concurrently. A bill neither Consul vetoes within its review period becomes law. The veto is unavailable for the annual budget, legislation implementing a constitutional obligation, or emergency legislation. A bill is emergency legislation only when so designated at final passage by a 2/3 vote of the full seated membership of both chambers.

§2.8 — Duty of Refusal

No civil servant, military member, or person exercising federal authority may comply with an executive order requiring violation of this Constitution or statute. Lawful refusal creates no liability and may not support penalty; any such penalty is void. The person may report the order to the EM.

§2.9 — Legat Consul Succession and Incapacity

(1) Full succession activates upon the Legat Consul's death, resignation, or removal. The Senate Speaker holds the office from that moment.

(2) Full succession vacates the successor's Senate seat. If the Senate Speaker is unable to serve, the most senior Senator by continuous service succeeds; ties are resolved by age.

(3) Statute may designate successors between the Senate Speaker and the senior-Senator fallback.

(4) The military chain of command recognizes succession from the moment of transfer. Orders issued in the prior Legat Consul's name after transfer are void.

(5) A successor serves the remainder of the term. Service through full succession counts toward the 12-year limit.

§2.9.a — State Emergency Council

(1) At each federal electoral period, the Elections Panel publishes a public-lot ordered list of States to the NRS. A State's head of state is its constitutionally designated officer or, absent a designation, the presiding legislative officer.

(2) If no one in the Legat Consul's succession order can be reached, the head of state of the first reachable State is the Emergency Designee. The Designee commands the military and acts to restore constitutional government.

(3) The heads of state of the other reachable States form the State Emergency Council, which directs and may replace the Designee. The Designee and Council are bound by Article I.

(4) Ten days after a §2.11 declaration or the Designee taking office, whichever is first, any federal seat or Consular office whose holder cannot be reached is vacant. States and Territories may fill vacant seats by emergency election; Consular offices are filled under §2.9 and §2.6.a.

(5) A person higher in the succession order who can act resumes office immediately. The Council and Designee end when each chamber has a majority of seats filled and Consular offices are filled. Members seated after the failure join the succession order only then.

(6) If the Council and Designee have not ended within six months of the Designee taking office, they end at that time and §15.7.a applies.

§2.10 — Executive Transparency

Both executives shall publish their official acts to the NRS within the statutory period. This includes orders, certifications, vetoes, determinations, objections, and refusals. No executive may classify, delay, or suppress publication of an act required to be public. Every record is permanently attributed to the responsible officer.

§2.11 — Emergency Governance

When extraordinary circumstances prevent ordinary constitutional government, either Consul, or a majority of available members of either chamber, may declare a continuity emergency. The declaration states the circumstances, is published to the NRS, and is sent to every State and Territory.

During a continuity emergency, each chamber able to meet may act notwithstanding ordinary quorum requirements; where one chamber cannot meet, the other may act alone, solely to preserve essential governmental functions and restore constitutional governance. Chamber thresholds are calculated from the members able to act. Emergency action may not amend this Constitution, extend any term except under §7.2.a, or derogate rights except under §1.19. Measures lapse when the emergency ends unless enacted by statute. Where a Consul is unavailable, authority passes under §2.9, §2.16 and §2.9.a.

Declarations lapse after 30 days unless renewed by the same process. Any member of either chamber or any Monitor may seek expedited SC review. Emergency procedures yield to ordinary procedures as soon as functioning permits. No emergency authority may delay that restoration.

§2.12 — Clemency

Each Consul may grant clemency only within their domain: the Legat Consul for military and national-security offenses, the Civic Consul for domestic federal offenses. Self-clemency is void.

Every grant shall state its reasons. The granting Consul or either chamber may request an EM factual review; review does not suspend or invalidate the grant. Clemency does not bar any constitutional, political, civil, or criminal remedy for misconduct connected with its exercise. Group amnesty requires legislation.

§2.13 — Consular Removal

The Legat Consul may be removed through two independent processes. Legislative removal requires a concurrent 2/3 vote of both chambers for serious misconduct, abuse of office, or permanent incapacity; the Legislature's determination that grounds exist is final.

Alternatively, a Senate majority may refer removal to a national recall referendum. The Legat Consul remains in authority while the referendum is pending and is removed upon certification of 60% approval with at least 55% participation. Succession occurs immediately. A failed recall may not be re-initiated during the same term.

§2.14 — Council of Ministers

The Council of Ministers consists of the Legat Consul's domain officers and the Civic Consul's ministers, serving as the standing forum for cross-domain coordination and disputes. It exercises no executive authority. Pending domain dispute resolution, each Consul may continue only functions clearly within their established domain; disputed actions are suspended. Unresolved disputes may be submitted to the SC. A summary record of each session is published to the NRS; the existence and general subject of a session may not be classified.

§2.14.a — Cross-Domain Emergency Lead

In a cross-domain emergency requiring unified operational authority, either Consul may propose a temporary operational lead. Designation requires concurrence of both Consuls and NRS publication. If they cannot agree, either may seek expedited SC resolution. Designation coordinates operations only and does not transfer constitutional domain.

§2.14.b — Cross-Domain Assistance

Either Consul may request assistance from the other within the responding Consul's domain. The request shall state its purpose, scope, and duration and be published to the NRS. The requesting Consul controls the purpose; the responding Consul determines whether and how to act, controls the means, and publishes the response. Neither Consul may compel the other. Assistance may provide non-coercive support only. It may not be used to compel, detain, surveil, or collect intelligence on persons within the Republic, or to commandeer civilian resources, except as §1.19 or another express constitutional source allows. Assistance may not exceed 90 days without a fresh request and response.

§2.15 — Federal Prosecution

The Civic Consul is responsible for enforcement of federal law and may set general prosecution policy. Statute shall establish a Federal Prosecution Service independent in individual prosecutorial decisions. Executive direction concerning a specific prosecution must be in writing and published to the NRS. The Legislature may not reduce the Service's appropriation below the prior year's level without a 2/3 vote of both chambers.

§2.16 — Executive Incapacity

(1) A Consul is temporarily unable to exercise authority upon their declaration or a determination by a majority of the Council of Ministers (at least five participating). Acting authority vests immediately in the Speaker of the Consul's chamber, then in statutory successors, then in the most senior chamber member by continuous service; ties resolved by age.

(2) The Consul may declare the incapacity ended, restoring authority 24 hours after publication. If incapacity is determined again on substantially the same grounds within 90 days, the determination requires 2/3 of the deciding body, and restoration for the following 30 days requires majority approval of that body or SC relief.

(3) The Legislature may extend that heightened-restoration period by simple majority of each chamber, not beyond six months from the renewed determination. Continuation thereafter requires a fresh 2/3 incapacity determination.

(4) A Consul may seek expedited SC review of a heightened incapacity determination, limited to lawful invocation and inability to exercise the office; policy disagreement is not incapacity.

(5) If fewer than five Council members are available, legislators are selected by lot to bring the deciding body to five: from the Senate for a Civic Consul proceeding, the Assembly for a Legat Consul proceeding.

(6) A person next in succession may decline within 48 hours by NRS publication; authority passes immediately. Failure to decline constitutes acceptance; the final available successor may not decline.

(7) Incapacity suspends only the exercise of authority. Death, resignation, and removal remain effective.

(8) If an acting Consul becomes unable to serve, acting authority passes immediately to the next qualified successor.

(9) Acting service does not count toward service limits and neither extends nor suspends the underlying electoral mandate.

§2.17 — Cooling-Off from Executive Service

During any constitutional cooling-off period barring a person from holding or seeking Consular office, that person may not serve in any executive capacity. This is the express exception to §7.4(5) and does not bar service outside the executive branch.

§2.18 — Domestic Insurrection

During armed insurrection against the constitutional order, the Council of Ministers remains convened. The Civic Consul shall report to the Assembly at statutory intervals for the duration of the response, as the Legat Consul reports to the Senate. No required report may be withheld because operations are ongoing.

Article III — The Legislature

§3.1 — The Legislature

The Legislature comprises the Assembly and the Senate. All legislation originates in the Assembly. The Senate may review and amend an Assembly-passed bill and must act within 90 days, or any shorter period defined by statute. By majority of its full seated membership, the Senate may once extend review by up to 30 days. Failure to act by the applicable deadline constitutes approval.

§3.2 — The Assembly

(1) States determine their own Assembly district arrangements, subject to §3.3. Single-member districts use majority-based Ranked Choice Voting; multi-member districts use proportional Ranked Choice Voting. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory, using a constituency divisor set and adjustable by statute.

(2) The census, conducted every ten years by a statutory independent agency, is the basis for reapportionment.

(3) The Assembly selects a Speaker from its own members by a method it establishes, provided the Speaker holds the support of a majority of full seated membership. Quorum is a majority of full seated membership. The Assembly establishes its own internal procedures.

(4) Members serve two-year terms. No person may serve more than six terms in the Assembly.

(5) Mid-term Assembly vacancies are filled by special election within the period defined by statute, not exceeding 90 days.

(6) A State or Territory may establish a recall process for its Assembly members, and a State for its senators, with the final decision vested in its legislature or governing authority or its eligible voters. No executive officer, administrative body, or court may alone recall a member.

§3.3 — Electoral Districts

States draw their own Assembly district maps subject to five criteria: substantially equal population per representative, accounting for the number of members elected by each district; geographic contiguity; compliance with §1.6 non-discrimination; no material dilution of minority voting power; and reasonable compactness. Voter political affiliation data, voting history data, and incumbent residence may not be used as criteria in drawing district boundaries. Protected-class data may be used only as reasonably necessary to comply with §1.6 and the dilution prohibition. The Elections Panel shall address each finding of non-compliance by a published determination. Where the Panel determines a map non-compliant and an election will occur before the State adopts a compliant map, the Panel draws an interim compliant map for that election, which is retired when the State adopts a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen or State government may challenge a map before the SC.

§3.4 — Legislative Standards

Every bill must address a single clearly defined subject. The full text of a bill must be published to the NRS for the minimum period defined by statute before final passage; substantial amendment restarts that period.

Each chamber operates as a full-time legislative body and publishes its sitting schedule, and any revision, to the NRS. No recess may be used to defeat or delay a constitutional duty or deadline. Emergency sessions may be called by either Consul or by petition of one-third of either chamber.

The Legislature shall maintain an ethics process capable of sanctioning and referring members. Each chamber may expel a member by 2/3 of full seated membership, effective immediately.

§3.5 — The Senate

(1) The Senate comprises two senators per State regardless of population, elected for six-year staggered terms. A mid-term vacancy is filled as the State provides, within the period defined by statute, not exceeding 90 days.

(2) No person may serve more than two terms in the Senate.

(3) Senators elect the Senate Speaker. The Senate defines its own internal procedures.

§3.6 — Treaties and Trade Agreements

Treaties and compact agreements require ratification by 2/3 of the full seated Senate. Trade agreements concluded by the Legat Consul take effect upon approval by an absolute majority of the full seated membership of both chambers. Neither chamber may amend the terms of a concluded international agreement. If the Senate disputes the Legat Consul's classification of an instrument as a trade agreement, it is treated as a treaty pending resolution, and the Senate or Legat Consul may seek expedited SC determination.

The Legat Consul may initiate treaty withdrawal by notice. Withdrawal requires affirmation by 2/3 of the full seated Senate within the period defined by statute, not exceeding 90 days of the notice; absent affirmation, the notice lapses. Treaties with recognized indigenous nations under Article XVI may not be unilaterally withdrawn.

§3.7 — Legislative Process and Passage

Legislation requires an absolute majority of the full seated membership of both chambers unless this Constitution provides otherwise. Higher thresholds are counted from the full seated membership of the chamber or chambers specified. Where this Constitution requires a simple majority of a chamber, it means a majority of members voting, a quorum being present.

§3.8 — Legislative Oversight

The Legislature may not withhold records, deliberations, votes, or draft legislation from the Monitors. The LM may review pending legislation only upon request by a member.

§3.9 — Independent Statutory Agencies

The Legislature may establish independent agencies outside the authority of either executive. The Legislature may not impair the independence of a function this Constitution assigns to an independent agency.

Unless this Constitution provides otherwise, statute governs organization, appointments, qualifications, terms, and oversight. Principal decision-makers exercising a constitutionally assigned independent function shall serve fixed terms and may be removed only for conduct, incapacity, or incompetence, not policy disagreement. Qualification requirements may not be designed to exclude candidates because of political or policy views or prior criticism of government.

§3.10 — Federal Legislative Competence

The Legislature may legislate only within powers assigned to the Republic by this Constitution and powers reasonably necessary to carry those powers into effect. Powers not assigned to the Republic remain with the States and their local governments. It may not enact legislation that destroys the capacity of States to govern themselves as self-governing communities. Where a valid federal law enacted within federal competence conflicts with State or local law, federal law prevails to the extent of the conflict. The Legislature may establish minimum standards only

where this Constitution assigns the Republic responsibility for the subject or where necessary to secure Article I rights or another express constitutional obligation. The Legislature may not direct State or local institutions as instruments of federal administration except where this Constitution expressly provides otherwise.

Where this Constitution directs that a federal function, standard, procedure, or framework be established, defined, or regulated, the obligation is fulfilled by statute unless otherwise specified. Where this Constitution assigns a function to a legislative body, independent agency, or other institution, the Legislature shall maintain an institution capable of performing it. No executive or administrative act may substitute for required legislation.

§3.11 — Delegation of Authority

The Legislature may by statute delegate defined authority within federal legislative competence to either Consul or to an independent agency under §3.9. A delegation shall state its scope, conditions, and duration. Delegation does not divest the Legislature of that authority: statute prevails over any conflicting exercise of delegated authority, and the Legislature may rescind a delegation at any time. Each exercise of delegated authority is published to the NRS identifying the delegating statute.

Article IV — The Judicial Architecture

§4.1 — Court Structure

The Republic's judiciary consists of district courts, appellate courts, and the Supreme Court. The Legislature may establish, abolish, and define the jurisdiction of inferior courts by statute, but abolition may not terminate or shorten a sitting judge's term. A judge whose court is abolished retains office and compensation for the remainder of their term and may serve temporarily under §4.2(5). Constitutional questions arising in any proceeding may be referred to the SC.

§4.2 — Judicial Appointments and Independence

(1) The Civic Consul nominates inferior court judges from the Judicial Pool under §9.8 within 90 days of a vacancy, or any shorter period defined by statute. The Senate confirms by a majority of its full seated membership.

(2) Inferior court judges serve a single non-renewable 12-year term and may be removed only under paragraph (3). Disagreement with a decision is not grounds for removal.

(3) The Legislature may remove an inferior court judge by 2/3 of both chambers for serious misconduct, abuse of office, or permanent incapacity; the Legislature's determination that grounds exist is final. A judge may also be removed through a statutory judicial-discipline process under SC oversight on conduct- or competence-based grounds. No Monitor finding is prerequisite to either process.

(4) No public official may direct or threaten a judge, or attempt to influence a judge's decision in a pending matter other than through the proceeding itself. Judicial compensation may not be reduced during the judge's term.

(5) Upon a vacancy in an inferior federal judicial office, temporary judicial authority passes immediately to an eligible serving federal judge under a succession order established by statute. Temporary service is not permanent appointment, does not alter the temporary judge's term, and ends when a successor assumes the vacant office.

§4.3 — The Supreme Court

The Supreme Court consists of the number of justices established by statute, never fewer than five. Justices serve single non-renewable 12-year terms in staggered classes as nearly equal as practicable. Altering the number of seats requires 2/3 of both chambers; a reduction takes effect only through attrition.

An equally divided Court leaves the challenged ruling in effect. A majority of seated justices, including Temporary Associate Justices, constitutes ordinary quorum; constitutional questions require at least five participating justices.

§4.3.a — Supreme Court Justice Removal

A Supreme Court justice may be removed by 2/3 of both chambers for serious misconduct, abuse of office, or permanent incapacity; the Legislature's determination that grounds exist is final. Disagreement with a decision is not grounds for removal. No Monitor finding is prerequisite to removal.

§4.4 — Supreme Court Selection

(1) The Civic Consul nominates SC justices from the Judicial Pool under §9.8. Any pool member meeting the statutory qualifications for the Supreme Court is eligible.

(2) The Civic Consul nominates within the period defined by statute following a vacancy, not to exceed 90 days.

(3) The Senate must vote within the period defined by statute following nomination, not to exceed 120 days; confirmation requires a majority of the full seated Senate. No deemed confirmation applies.

(4) Upon an SC vacancy, the most senior eligible Appellate Court judge by continuous service becomes Temporary Associate Justice immediately by constitutional operation, with full voting rights until the vacancy is filled; ties are resolved by age.

(5) A justice's term runs from confirmation; a justice filling a mid-term vacancy serves only the remainder of the original term.

§4.4.a — Public Confirmation

If the Civic Consul fails to nominate, or the Senate fails to vote, within the applicable period under §4.4, the Temporary Associate Justice is submitted for public confirmation at the next federal electoral period. Confirmation requires 60% of votes cast under §7.3. An ordinary nomination and Senate confirmation completed before Elections Panel certification of the ballot ends the public route. If confirmed, the justice serves the remainder of the original term; if rejected, the next eligible Appellate Court judge becomes Temporary Associate Justice and the vacancy process restarts.

The Temporary Associate Justice may advocate publicly for confirmation. Statute shall apply the foreign-contribution prohibition and disclosure requirements of §8.1 to public confirmation votes.

§4.5 — Judicial Review and Scope

(1) Courts may declare legislative acts, executive orders, and administrative decisions unconstitutional and void.

(2) Courts decide constitutional and legal questions, not policy questions. Where a statute is ambiguous, courts apply the interpretation most consistent with this Constitution and may not rewrite clear statutory language.

(3) Monitor findings published to the NRS are admissible; where a court reaches a different conclusion, it must address the inconsistency in its written decision.

(4) Except where this Constitution expressly confers standing, courts adjudicate only cases involving a concrete, articulable legal injury and may not issue advisory opinions. An organization has standing where at least one member would have standing and the claim is germane to its established constitutional purpose. The Legislature may not leave any category of legal injury without a judicial forum.

(5) The SC has original jurisdiction over:

— constitutional disputes between States, between a State and the federal government, and constitutional challenges to federal statutes;

— disputes between the Legat Consul and Civic Consul concerning their respective constitutional domains under §2.14;

— constitutional challenges involving constitutionally independent institutions where their independence protections make inferior court review structurally inappropriate;

— emergency rights claims brought directly under §16.2;

— and disputes over the consistency of ratified amendments with entrenched provisions under §17.3.

(6) The SC has jurisdiction over constitutional challenges to immediate defensive military authority under §2.2 during active operations and must rule within the period defined by statute, not to exceed 48 hours.

(7) Where conflict between constitutional actors threatens lawful governance or constitutionally required essential services, existing lawful operations continue pending resolution. No actor may use refusal to certify, approve, or coordinate to suspend a constitutional obligation. The SC has expedited jurisdiction over such disputes.

(8) Where this Constitution establishes a deadline for an SC ruling, a majority of seated justices may, before expiry and upon stated reasons, grant one extension. The extension may not exceed the lesser of 30 days or the original period for decision. The SC may issue limited interim protective orders where delay would otherwise cause irreparable harm.

(9) Failure of the SC to rule within a required period does not determine the merits or produce a substantive constitutional outcome. The parties retain any remedy otherwise available under this Constitution.

§4.5.a — Judicial Decisions and Privacy

Judicial decisions shall be public. Courts shall protect personally identifying information where its disclosure is unnecessary to understand the decision, enforce the law, or preserve public accountability.

§4.6 — Judgment Recognition

Judgments, official records, and authenticated documents valid in one jurisdiction of the Republic shall be recognized in all others. A judgment may be denied recognition only where the issuing court lacked jurisdiction or the judgment was obtained by fraud. A judgment contrary to Article I is void under §17.4.

A judgment or status order published to the NRS is self-authenticating and effective throughout the Republic without re-registration. No State or Territory may discriminate in recognition based on the parties or subject matter involved.

Article V — Citizenship and National Identity

§5.1 — Citizenship

A child is a citizen from birth if at least one parent is a citizen or legal resident, or if the child would otherwise be stateless. Citizens acquire full citizenship rights, including voting and eligibility for office, at 18.

A legal resident may earn citizenship after the continuous residency period and legal qualifications established by statute upon demonstrating civic and constitutional proficiency, or through honorable completion of military or national service. Any required assessment shall test constitutional and civic knowledge, not political opinion or cultural loyalty, and shall be administered by an independent agency under §3.9.

Citizenship may not be revoked as punishment. Naturalized citizenship may be revoked only by judicial finding, on clear and convincing evidence, that it was obtained through material fraud in the application, and never where revocation would cause statelessness. Revocation does not affect derivative citizenship previously acquired by another person.

A child born before a parent acquired legal residency or citizenship who joins that parent in the Republic within the period defined by statute, which may not be less than five years, receives the parent's status.

§5.1.a — State and Territory Voting Citizenship

Every citizen is a voting citizen of exactly one State or Territory, determined by residence or domicile under applicable law. No law may leave a citizen without a State or Territory of voting citizenship. Statute shall resolve conflicting claims; recognition in one jurisdiction terminates prior recognition in another.

§5.2 — Legal Resident Rights

Legal residents may work, enter contracts, own property, and access the social-state systems under Article XII. They do not hold federal voting rights or eligibility for federal office.

§5.3 — Custodial Care of Children

Where removal of a parent or guardian would deprive a child of their primary caregiver, the Republic shall ensure the child's care, housing, and connection to remaining family, and the removal order is stayed until custodial arrangements are resolved. No child of a citizen or legal resident may be deported because of the child's own documentation status.

Article VI — Immigration and Residency

§6.1 — The Two-Stage Immigration System

Legal residency requires sponsorship under the applicable State or federal framework, followed by federal certification, except as otherwise provided by this Constitution. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification categories are established by statute; no ideological screening or nationality-based quotas may be applied at any stage. Any denial must specify the precise ground in writing. Upon completion of both stages, legal residency vests by operation of law; neither executive may delay, condition, or deny that status. The Legislature may set aggregate limits on total applications received and processed in any period. Asylum claims under §1.20 are exempt from ordinary sponsorship, certification, and aggregate application limits; no refusal of sponsorship may extinguish such a claim. Immigration into Territories shall be administered under federal standards, with each Territory entitled to negotiate immigration volumes and applicant qualifications with the Republic under its Territorial Compact.

§6.2 — Enforcement, Removal, and Appeals

(1) Only the federal government may remove a person from the Republic.

(2) State sponsorship denials may be challenged only for discrimination contrary to §1.6; the court determines the remedy.

(3) Where federal certification is denied on national security grounds, a reviewing court may examine classified evidence in camera. If the evidence does not establish a credible, specific, and documented security concern, the denial is vacated and certification must be reconsidered on the remaining criteria.

(4) A person subject to removal proceedings, or challenging a decision under this section, is entitled to counsel appointed at public expense where they cannot afford representation.

§6.3 — Asylum and Protection

(1) An asylum claim must be determined before removal may be executed. A claim found to have been filed solely to delay removal may be expedited by statute, without diminishing the right to a fair hearing or the protections of §1.21.

(2) Where the independent federal asylum adjudicative process grants protection, the person acquires legal residency by operation of that determination; State sponsorship and federal certification are not required conditions.

(3) No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted.

(4) Asylum proceedings must provide a qualified adjudicator; interpreter access; the right to present evidence and witnesses; the right to legal representation with appointed counsel at public expense where the applicant cannot afford representation; a written decision with grounds; and a right of appeal. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas.

(5) The Legislature shall establish an independent federal asylum adjudicative process by statute, institutionally separate from immigration enforcement, removal, foreign affairs, intelligence, and national-security operations. Adjudicators shall exercise independent judgment, with protections established by statute sufficient to preserve impartial decision-making.

(6) An unaccompanied minor arriving in the Republic is an Inhabitant from the moment of contact and holds full §1.21 protection. A federal legal guardian must be appointed by an independent federal court with jurisdiction over the point of contact within 72 hours.

(7) Detention of an unaccompanied minor must be lawful and necessary and may occur only in a facility specifically designated and resourced for children.

§6.3.a — Unexecuted Removal Orders

A person whose removal cannot be executed shall remain at liberty, subject to all applicable laws of the jurisdiction in which they reside. The Legislature may establish reasonable registration and reporting requirements.

Article VII — Elections and Federal Office

§7.1 — Consular Election System

(1) The Legat Consul is elected through two concurrent requirements: a national RCV majority and a State plurality. A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States. A candidate wins outright by satisfying both. Territory citizens vote in consular elections and their votes count in the national RCV total, but Territories are excluded from the State plurality calculation.

(2) Where a candidate's national RCV majority reaches or exceeds 60% of votes cast, the State plurality requirement is waived.

(3) Where no candidate wins outright, a runoff is conducted between the national RCV winner and the candidate, other than that winner, who received first-preference pluralities in the most States. The runoff is decided by national majority without a State plurality requirement.

(4) Electoral ties shall be resolved by lot under the supervision of the Elections Panel. The Elections Panel administers and certifies all consular elections.

§7.2 — Federal Elections

(1) Federal elections are held at regular intervals: Assembly elections every two years; Senate elections on the staggered six-year cycle; Legat Consul elections every four years.

(2) All federal elections shall use Ranked Choice Voting.

(3) The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors.

(4) States administer federal elections through the National Voting System under standards established and enforced by the Elections Panel.

(5) Neither executive nor any State may interfere with federal elections or restrict lawful access to the National Voting System, except as expressly authorized by this Constitution.

(6) The Republic shall provide the financial and technical assistance necessary for every State to meet federal election standards. Assistance is subject to Elections Panel oversight.

(7) The results of a federal election or a direct vote of the citizens are final upon certification, subject only to timely Supreme Court review for material error in the certification of votes, sought under procedures established by statute.

§7.2.a — Special Elections and Postponements

Special elections shall be administered by the Elections Panel under procedures established by statute. Where the Elections Panel certifies that a natural disaster or catastrophic infrastructure failure makes a federal election impossible across a substantial portion of the Republic, the Legislature may postpone the affected election for up to 90 days by a 2/3 vote of each chamber. The mandates of affected officeholders extend until certification of the postponed election. Any further postponement requires renewed Elections Panel certification that holding the affected election remains impossible and renewed legislative approval by the same threshold. Elections shall proceed as soon as practicable once the impediment has ended. Elections Panel determinations are subject to expedited judicial review.

§7.3 — Electoral Supermajority Threshold

Except for constitutional-amendment referendums governed by §17.1, any supermajority required by this Constitution in a direct vote of the citizens is 60% of votes cast, in addition to any separately established participation or turnout requirement.

§7.4 — Eligibility and Disclosure for Federal Office

(1) Every candidate for federal office and every person assuming federal office without election shall publicly disclose their criminal history under penalty of perjury. A current and accurate disclosure satisfies this requirement for subsequent appointments or elevations. Knowingly false or materially incomplete disclosure constitutes a federal offense.

(2) No criminal conviction disqualifies a person from federal office except a conviction for insurrection, rebellion, or treason against the Republic, or subversion of a federal election. These grounds are exhaustive and require conviction rather than accusation or pending charges.

(3) A person who leaves a constitutional office before the expiration of their term is deemed to have completed that term for purposes of term limits and required cooling-off periods. Departure from office does not shorten, waive, or extend any cooling-off period otherwise required by this Constitution.

(4) A person constitutionally ineligible for an office may not exercise its authority, including through succession or acting service, except where this Constitution expressly provides otherwise. Succession passes to the next eligible person.

(5) An office-specific restriction does not disqualify a person from another constitutional office unless this Constitution expressly provides otherwise.

(6) A candidate disqualified by the Elections Panel may appeal to the Appellate Court within 14 days, unless another period is established by statute. The Court shall determine whether the applicable eligibility requirements were correctly applied and resolve the appeal in sufficient time to permit the candidate's participation in the scheduled election.

§7.5 — Removal from Federal Office

A federal officeholder whose tenure or removal is governed by this Constitution may be removed only through a mechanism established or expressly authorized by this Constitution. Criminal liability remains unaffected.

§7.6 — Continuity and Acting Service

Selection and confirmation procedures for fixed-term constitutional offices shall provide for uninterrupted succession.

§7.7 — Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office are protected from personal civil liability for lawful acts performed within their official authority. This protection does not extend to criminal conduct, acts outside official authority, or violations of this Constitution.

§7.8 — Separation of Branch Authority

No person may simultaneously hold office in more than one branch of government, except when temporarily exercising acting authority under this Constitution. During such acting service, the person retains their original office or mandate but may not exercise any authority of that office. The body that selects the officer may designate an interim holder of the office's functions for the duration of acting service.

§7.9 — Inviolability of Electoral Mandates

An elected constitutional mandate may not be shortened, suspended, or terminated except through a mechanism expressly provided or authorized by this Constitution.

§7.10 — Ethics and Financial Disclosure

(1) A financial interest is disqualifying where it creates a direct and material conflict with the impartial exercise of official duties.

(2) Except for Monitor Generals as provided in Article IX, constitutional officers shall disclose their financial interests, holdings, income sources, and liabilities to the Monitor responsible for their office, within a period defined by statute after taking office and annually thereafter. Disclosures shall be published to the NRS.

(3) An officer with a direct financial interest in a decision within their authority must recuse themselves. This requirement is self-executing.

(4) Constitutional officers may not accept gifts exceeding a de minimis threshold established by statute; absent such statute, the threshold is zero. Gifts received in an official capacity belong to the Republic and must be disclosed and transferred to the appropriate public authority regardless of value.

(5) Each Monitor may investigate violations within its mandate and refer matters warranting further action to the appropriate authority.

§7.11 — Codes of Conduct and Conflicts of Interest

The Legislature may establish codes of conduct, disclosure requirements, conflict-of-interest standards, and disciplinary procedures for constitutional offices outside the Legislature. Such rules may not diminish constitutional authority, tenure, or institutional independence.

A constitutional officer with a personal, financial, or other material connection to a matter within their authority shall publicly disclose that connection and state whether they will participate or recuse themselves, with reasons for that decision. The disclosure and explanation shall be published to the NRS.

§7.12 — Post-Service Restrictions

Constitutional officers may not exploit non-public information, privileged access, or official influence obtained through their service for private benefit after leaving office. The Legislature shall establish post-service restrictions and cooling-off periods by statute. The responsible Monitor shall audit compliance; enforcement rests with the appropriate legal authority.

§7.13 — Federal Public Service Ethics

The Legislature shall establish disclosure and recusal requirements for federal employees and military personnel whose duties present material conflicts of interest. The responsible Monitor shall audit institutional compliance.

§7.14 — Compensation of Federal Officials

Compensation of federal officials shall be established by statute. No federal official may determine their own compensation or that of their direct supervisors other than through such a statute. Changes to the compensation of elected constitutional officers take effect only after the next election for the affected office following enactment. Official benefits and accommodations must reflect the functional requirements of the office.

§7.15 — Authority by Constitutional Operation

Authority conferred, transferred, or assumed by operation of this Constitution vests immediately upon satisfaction of the constitutional conditions, without oath, acceptance, publication, or other implementing act unless expressly required by this Constitution. The change shall be recorded to the NRS as soon as practicable. The NRS is the authoritative public record but does not confer authority.

Article VIII — Electoral Finance and Campaign Conduct

§8.1 — Electoral Finance

All contributions to electoral campaigns must be disclosed in full to the Elections Panel, including the identity of every contributor and the amount given, without threshold or exception. The Elections Panel publishes contribution records to the NRS; publication may present contributions below a threshold defined by statute in aggregate or generalized form to protect the privacy of individual contributors. Anonymous contributions are prohibited.

Citizens and lawful residents may contribute to electoral campaigns, subject to individual contribution limits established by statute. Contributions from corporations and other business entities are barred. Contributions from foreign governments, foreign nationals other than lawful residents, and foreign-controlled entities are prohibited. No person may make, receive, or fund an electoral contribution or independent expenditure on behalf of, at the direction of, or with funds from such a source, directly or through an intermediary.

Independent expenditures made to support or oppose a candidate or a question submitted to a direct vote of the citizens are subject to the same disclosure requirements as direct contributions but are not subject to contribution limits. Expenditures coordinated with a campaign are treated as direct contributions.

Financial contributions to electoral campaigns and expenditures coordinated with a campaign are subject to regulation under this section and are not protected as speech or associational activity under §1.5. Independent political expression remains protected under §1.5, subject to the disclosure requirements and foreign-source prohibitions of this section.

§8.2 — Campaign Conduct

Candidate impersonation, vote suppression, and interference with election administration are prohibited. Campaign communications must clearly identify their sponsor. The Elections Panel administers electoral conduct requirements; the Legislature establishes sanctions by statute. The Elections Panel may investigate objectively identifiable violations of this section and establish technical and administrative standards, but may not create substantive restrictions on political expression or judge the truthfulness, political merits, or opinions expressed in campaign communications.

Foreign governments, foreign nationals, and foreign-controlled entities may not conduct covert operations to influence Republic elections. A candidate who knowingly accepts prohibited foreign electoral assistance is disqualified from that election cycle by determination of the Elections Panel, made before certification of the election after notice and an opportunity to respond, subject to appeal under §7.4(6).

Constitutional officeholders may not use public resources, personnel, or official authority for electoral campaign purposes, whether campaigning for reelection or for another office. Ordinary official duties and communications undertaken in good faith do not constitute campaign activity merely because an election is approaching.

§8.3 — Campaign Access to Public Communication Resources

Operators of communication channels on public resources, including broadcast spectrum, shall offer qualified candidates access impartially and at reasonable rates, so that no candidate is excluded by the limits of their own resources. The terms of access shall be established by statute. The Elections Panel shall certify compliance.

§8.4 — Public Campaign Financing

The Legislature shall by statute establish a public campaign financing system available to all qualified candidates for federal office on equal terms. Public financing shall provide qualified candidates an initial allocation sufficient to establish a campaign and communicate with voters. Acceptance of public support does not bar a candidate from

private fundraising under §8.1, and no candidate may be disadvantaged in eligibility, ballot access, or access under §8.3 by reason of participating. The Elections Panel administers the system and publishes annual compliance findings.

Article IX — The Monitors

§9.1 — Three Monitors

The Republic maintains three constitutionally independent Monitors — Legislative (LM), Executive (EM), and Judicial (JM) — each selected under §9.2. Monitors hold an information-only mandate: they observe constitutional processes, assess compliance, and publish findings. Findings and assessments are not binding on any constitutional actor and are not a prerequisite for any legal proceeding or governmental function. Each Monitor General serves a 10-year non-renewable term. Any constitutional officer, chamber, or body may request a focused assessment from any Monitor within that Monitor's mandate; the Monitor publishes the assessment by the requested date where practicable. Persistent non-responsiveness to reasonable requests may be published by the other two Monitors as a non-responsiveness finding. Once a Monitor undertakes work under constitutional authority, the work must be completed and published even if it becomes moot. A missed deadline may affect any consequence expressly attached to the deadline but does not erase the publication duty. Work may be discontinued only where completion has become factually impossible; the reason for discontinuation and all completed work product must still be published to the NRS.

§9.1.a — The Legislative Monitor

The LM audits the Legislature for fiscal accuracy and constitutional compliance. Responsibilities include auditing the population census for constitutional compliance; reviewing Assembly district maps for compliance with the criteria established in §3.3; auditing the Elections Panel's administration of the referendum eligibility process; and publishing an annual compliance report.

§9.1.b — The Executive Monitor

The EM audits both executives and the Monetary Authority. Annual responsibilities include assessing military compliance under §§14.1 and 14.2; auditing compliance with the judicial authorization requirement under §2.3; conducting factual clemency reviews when requested under §2.12; reviewing disclosure records for constitutional appointments; and auditing electoral finance within the period defined by statute following any election. The EM audits constitutional officers for dereliction — failure to perform a constitutionally mandated function within the required period where that failure was not caused by circumstances genuinely beyond the officer's control. Political disagreement with a constitutional requirement is not a defense. This audit concerns the performance of constitutionally required duties and does not authorize review of the political merits of legislative decisions or the legal reasoning of judicial decisions.

§9.1.c — The Judicial Monitor

The JM audits the courts, the Elections Panel, and compliance with constitutional treaty and compact obligations. Its specific audit responsibilities are established under §9.4.

§9.1.d — Monitor General Term Expiry and Vacancy

A Monitor General's constitutional authority terminates automatically at the moment their term expires. Any official act taken after term expiry is constitutionally void. Where a Monitor General's term expires without a confirmed successor ready to assume office, or where an unexpected vacancy arises mid-term through death, resignation, or removal, the most senior eligible member of the affected Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General until a successor assumes authority under §9.3; ties in pool tenure are resolved in favor of the older member. The same acting mechanism activates during a suspension under §9.1.e or §9.7.a and ends upon restoration of the original Monitor General's authority or commencement of a

successor's authority. The Acting Monitor General holds full constitutional authority of the office but may not be appointed as successor to the Monitor General for whom they act; upon conclusion of acting service they return to the candidate pool. The JMC records the designation and both executives are notified immediately. Suspension does not vacate the office, interrupt its term, or affect compensation or benefits.

§9.1.e — Monitor General Incapacity

(1) A Monitor General is temporarily unable to exercise the office upon the Monitor General's own declaration or a joint determination by the other two Monitor Generals that the Monitor General cannot exercise the functions of office. The declaration or determination must state its functional grounds. Political or policy disagreement alone is not incapacity; publication of grounds must protect constitutionally confidential personal information.

(2) A Monitor General who declares their own incapacity may declare it ended, restoring authority 24 hours after publication to the NRS. Self-declared incapacity has no fixed maximum duration. After a first joint incapacity determination, the affected Monitor General may likewise declare recovery, restoring authority 24 hours after publication, subject to subsections (3) and (5).

(3) Where the other two Monitor Generals jointly determine incapacity again on substantially the same grounds within 90 days after a recovery declaration, the renewed determination immediately suspends authority. Restoration during the following 30 days requires agreement of the other two Monitor Generals or relief from the SC.

(4) The affected Monitor General may seek expedited SC review of a joint determination or continuing suspension. Review is limited to lawful invocation and whether the stated grounds concern inability to exercise the functions of the office. Judicial review is not a prerequisite to suspension.

(5) A jointly determined suspension ends 30 days after its initial publication unless the other two Monitor Generals request a national extension vote from the Elections Panel before that deadline. The request specifies an end date no later than six months after the initial joint determination on substantially the same grounds. Timely filing continues the suspension pending certification, which must occur within 90 days of that initial determination. An extension requires 60% of votes cast under §7.3 with participation by at least 55% of eligible citizens. If the extension fails, certification does not occur by the deadline, or the approved end date arrives, the suspension ends automatically unless another independent constitutional ground for suspension applies. Repeated proceedings on substantially identical grounds cannot circumvent this maximum.

§9.2 — Selection and Independence

Each Monitor General shall be selected through a process that excludes the institution subject to that Monitor's oversight from controlling the selection.

§9.3 — Monitor General Selection

All Monitor General confirmations follow the same process: the nominated or lottery-selected candidate is confirmed by national popular vote at the next federal electoral period by simple majority; timing is defined by statute to ensure seamless succession; if the confirmation vote fails, the §9.1.d acting mechanism activates and a new selection must begin within 60 days. The Elections Panel administers all confirmation votes. The LM Monitor General is nominated by the SC from the LM candidate pool, which is audited jointly by the EM and JM. Where the SC fails to nominate an LM Monitor General within 60 days of a vacancy, the JMC shall select a nominee by public lottery from the eligible LM candidate pool. The EM Monitor General is nominated jointly by the Assembly Speaker and Senate Speaker from the EM candidate pool, which is audited jointly by the LM and JM, with JM audit findings on the nominee’s disclosure record published to the NRS before the vote; where the Speakers fail to jointly nominate within 60 days of a vacancy, the JMC shall select a nominee by public lottery from the eligible EM candidate pool. The JM Monitor General is selected by public lottery under §9.8 from the JM Candidate Pool under §9.4. No two Monitor General full

terms may be scheduled to begin within 18 months of each other; service for the remainder of a predecessor's term does not commence a new term for the purposes of this spacing requirement. For a scheduled succession, the confirmed successor assumes full authority at the precise moment the incumbent's term concludes. A successor confirmed following an unscheduled vacancy assumes full authority immediately upon certification of the confirmation result and serves the remainder of the original term. Any person confirmed by the public to serve a full term as a Monitor General is not subsequently eligible to enter any Monitor General pool. A person confirmed by national popular vote to serve the remainder of a predecessor's term following an unscheduled vacancy under this section may not subsequently enter the Monitor General pool for that same capacity, but remains eligible for the pools of the other two capacities if otherwise qualified. Acting service under §9.1.d does not constitute confirmation for purposes of this provision.

§9.4 — Judicial Monitor Audit Mandate

(1) Annual audit responsibilities include court operations for scope compliance and independence; the Elections Panel for electoral integrity and for its administration of the Judicial Pool; SC independence; inferior court compliance with jurisdictional limits; judicial compliance concerning Article XIV and Article XIX; and compliance with Article XVI treaty obligations and Article XX compacts.

(2) Eligibility for the JM Candidate Pool is limited to former Republic judges — persons who have completed judicial service on a court of record at the trial court level or above, whether in a State court or the Republic's federal court structure — who have been out of active judicial office for at least one year. Former SC justices must have been out of SC service for at least five years.

(3) The JM Candidate Pool is audited jointly by the LM, which reviews judicial service records, and the EM, which reviews financial disclosures.

§9.4.a — Judicial Pool — Eligibility Criteria

Any citizen meeting the following eligibility criteria may apply directly to the Elections Panel for entry into the Judicial Pool, from which all federal judicial appointments are drawn: at least 15 years of legal practice or 10 years of judicial service; no current government position; no disqualifying financial interest as defined in §7.10. A person who has served as a Supreme Court justice may not subsequently re-enter the Judicial Pool. A person who has served in any other federal judicial appointment may not be nominated again to the same court, but remains eligible for nomination to a different federal court. Temporary or acting judicial service does not constitute service for purposes of this provision.

§9.5 — Monitor Operations

Every Monitor finding, report, and assessment is published to the NRS permanently and free of charge and is exempt from classification, but must protect information whose disclosure would violate constitutional rights or compromise lawful security interests. No official outside the issuing Monitor may suppress, delay, classify, or alter a Monitor report before publication. Internal review for factual accuracy and compliance with constitutional disclosure protections is permitted but may not be used to suppress findings or obstruct required publication. Any Monitor staff member may publish a minority report directly to the NRS, subject to the same protections for constitutionally confidential information and lawful security interests as official Monitor reports, if they believe a finding has been improperly omitted or suppressed. No staff member may be disciplined or retaliated against for making a publication authorized by this section. All three Monitors jointly publish an annual State of the Republic report on a fixed date regardless of whether any political actor requests it. Where a compliance question spans multiple Monitor mandates, the Monitors may conduct a joint investigation; no Monitor General may veto another's contribution. Monitors have unrestricted access to records, personnel, facilities, and systems within their constitutional audit mandates. Access to confidential or classified information does not authorize its public disclosure. Obstruction of a Monitor acting within

its constitutional audit mandate must be documented and reported to the NRS and the responsible body. Where an applicable compliance standard has been published under §9.5.a, the obstruction shall also be recorded as a Fail. Every finding, report, and assessment published under this Article is delivered on publication to the body or officer responsible for the subject matter, and to the Speaker of each legislative chamber. Delivery is a matter of record and imposes no obligation to act.

§9.5.a — Compliance Standards and Findings

The JMC defines and publishes the compliance standard for each category of audit — the criteria by which each aspect of a finding is determined Pass or Fail, evaluated separately rather than as a single whole-entity judgment. No Monitor may issue a Pass or Fail finding for a category of audit for which the JMC has not yet published a standard; the underlying audit function continues, but produces no Pass or Fail determination until a standard exists. For each standard, the JMC publishes both the criteria and the methodology by which the criteria were developed, and every published finding identifies the standard applied. A new or changed standard applies only to conduct occurring after it is published. Every Monitor report requires the body or officer responsible for its subject matter to publish its own account to the NRS within the period defined by statute. The response need not agree with the Monitor's findings.

§9.5.b — Agency Accountability

Monitor findings, reports, and assessments do not substitute for a responsible body's independent obligation to perform its constitutional and statutory duties or to act on matters within its operational authority.

§9.6 — Monitor Minimum Funding Guarantee

The annual appropriation for each Monitor, the Elections Panel, the NRS Panel, and the Monetary Authority may not fall below the prior fiscal year's funding level adjusted to preserve equivalent purchasing power, whether prices rise or fall, without a 2/3 concurrent vote of both chambers. The Monetary Authority certifies the prior-year funding level of each other protected body, and the EM certifies the Monetary Authority's, each adjusted for the change in the price level; each certified floor is published to the NRS before the Legislature begins its annual budget process. Where a budget reduces a protected body below its certified floor without the required supermajority, that certified floor takes effect automatically for that body by constitutional operation.

§9.7 — Joint Monitor Council

(1) The three Monitor Generals jointly constitute the JMC as the standing coordination body for matters crossing Monitor jurisdictions. Two of the three Monitor Generals constitute a quorum for all JMC functions.

(2) The JMC houses joint constitutional functions expressly assigned to it by this Constitution, including the constitutional-pool lotteries assigned under §9.8. It exercises each assigned function collectively by majority vote of participating Monitor Generals, and the stated position of any dissenting or non-participating Monitor General is published to the NRS alongside the joint determination. Where Monitor Generals cannot reach consensus on any other joint matter, each publishes an individual assessment and the disagreement is noted in the permanent NRS record.

(3) The JMC conducts an annual NRS audit covering both operational compliance — whether the NRS is functioning as constitutionally required, accessible, and free of single points of failure — and content integrity — whether all constitutionally required publications across all domains have been made and no records have been altered or deleted.

(4) The JMC has no authority to override the individual mandate of any Monitor. The JMC may delegate operational responsibility for any assigned function to one or more individual Monitor Generals without transferring constitutional accountability for the function; it may also coordinate resource allocation across Monitor offices as needed to fulfill assigned functions, provided no Monitor's capacity to fulfill their individual mandate is diminished.

§9.7.a — Institutional Compromise Protocol

Where two Monitor Generals jointly determine that the third has engaged in serious misconduct or abuse of office, they shall publish the determination with its stated evidence, and the affected Monitor General's authority is suspended immediately. Disagreement with a Monitor General's findings or conclusions is not grounds for suspension. The suspension is limited and may be extended as provided for jointly determined incapacity in §9.1.e(5). The affected Monitor General may seek expedited SC review under §9.1.e(4), limited to lawful invocation and whether the stated evidence concerns serious misconduct or abuse of office. Suspension under this section is not removal; permanent removal is governed exclusively by §9.9.

§9.8 — Constitutional Pool Framework

(1) The Elections Panel maintains all constitutional candidate registries and pools, including the Judicial Pool, and administers public access to their records via the NRS.

(2) Each pool is subject to ongoing Monitor audit.

(3) Lottery draws for constitutional candidate pools assigned by this Article are conducted by the JMC in a public session. A Monitor General takes no part in a draw that selects or nominates their successor.

(4) The constitutional minimum for all pools is five eligible members. Where a pool falls below five, the Monitor responsible for auditing that pool shall publish a compliance breach.

(5) Where a constitutional candidate pool falls below its required minimum, the Elections Panel shall conduct an expedited eligibility review of applicants to restore the pool.

(6) Eligibility criteria for all pools are strictly objective — years of practice or service, office status, and financial interests as defined under §7.10. No registry administrator may apply criteria relating to legal philosophy, judicial temperament, ideological orientation, or political association; any exclusion on such grounds is constitutionally void.

(7) Where an applicant is excluded or removed, the administering body must publish the specific grounds to the NRS within 14 days; the applicant may appeal to the SC within 14 days of that publication on the sole ground that the eligibility criteria were misapplied. Appeals arising from expedited restoration receive expedited consideration.

(8) Changes to eligibility criteria apply prospectively only and do not affect persons already entered in a constitutional pool or registry under the criteria applicable at the time of their entry. This protection does not exempt a member from continuing constitutional eligibility requirements, including the prohibition on disqualifying financial interests under §7.10.

§9.9 — Constitutional Officer Removal — Standard Track

(1) A Monitor General may be removed for serious misconduct, abuse of office, or permanent incapacity. Removal is initiated by the branch or branches that Monitor does not audit: for the Legislative Monitor General, jointly by both executives; for the Executive Monitor General, by the Legislature by concurrent resolution of both chambers; for the Judicial Monitor General, jointly by the Legislature by concurrent resolution of both chambers and by both executives. The initiating authority files stated grounds to the NRS. Filing does not suspend the Monitor General's authority.

(2) The Elections Panel administers a national removal referendum no later than 90 days after filing, or at the next regularly scheduled federal election, whichever comes first. Removal requires 60% of votes cast under §7.3 and participation by at least 55% of eligible citizens.

(3) If the referendum fails or is not administered within the required period, the removal proceeding closes without removing the Monitor General.

(4) Following a failed removal referendum, removal may not be reinitiated against the same Monitor General on the same or substantially similar grounds arising from the same conduct for the remainder of that Monitor General's term. This restriction does not bar proceedings based on materially new conduct or evidence.

(5) For other constitutionally confirmed independent officers, other than federal judges whose removal is governed by §4.2 and §4.3.a, a resolution supported by one-third of either legislative chamber, or two of the three Monitor Generals acting jointly, may initiate removal by publishing stated grounds to the NRS. Initiation does not itself suspend authority. Removal requires a concurrent vote of 2/3 of the full seated membership of each legislative chamber, on grounds within the statutory removal categories for that office.

(6) The Legislature defines enumerated removal categories by statute for the offices covered by paragraph (5). Changes to removal categories apply only to conduct occurring after they take effect.

§9.9.a — Monitor General Disclosure

Monitor Generals disclose financial interests under the same substantive requirements and schedule established in §7.10, with disclosure published directly to the NRS; no Monitor reviews another Monitor General's disclosure. Concealment of a disqualifying financial interest, or failure to recuse where required, is serious misconduct for purposes of §9.9.

Article X — The National Record System

§10.1 — National Record System

(1) The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost.

(2) Every constitutional act, order, finding, certification, designation, declaration, and determination made under this Constitution is published to the NRS as a permanent record; no provision need state this obligation individually. Official records and materials created, received, maintained, or produced in the exercise of official duties are property of the Republic. No officer may remove them from Republic custody, retain them as personal property, or destroy them except as applicable law authorizes. Their publication, access, retention, and classification are governed by this Article and applicable law.

(3) All electoral records — voter registration, ballot counts, audit trails, certification documents, constitutionally required campaign-finance records, electoral-administration records, direct-democracy records, and constitutional-amendment records — must be published to the NRS within the applicable constitutional or statutory timeframe. No classification exception applies to those records. Nothing in this subsection permits disclosure of an individual voter's ballot, information that would defeat ballot secrecy under §11.2, or personal information protected by §1.8.

(4) Where this Constitution provides a specific publication timeline it governs. Otherwise a constitutionally required record is published as soon as possible after the act or event to which it relates.

(5) Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original.

(6) Where the NRS Panel determines by unanimous vote that a record poses an imminent, specific, and documented threat to individual safety, it may restrict access to that record for up to 30 days pending review by the court designated by statute. The record is restored when the 30 days end unless that court has confirmed the restriction on the narrowest possible grounds, in which case the court sets its duration. The original timestamp and the restriction record both remain as permanent NRS entries. Where a restriction ends without confirmation, the same record may not be restricted again under this subsection on the same or substantially similar grounds.

(7) The JM maintains a continuously operating parallel authentication system, physically independent of the NRS, capable of preserving all constitutional acts with full constitutional effect from issuance; upon NRS restoration, parallel records migrate with their original timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record.

(8) The Legislature defines technical standards for both systems by statute.

§10.2 — Classification Criteria

Government records may be classified only where required to protect national security, under grounds defined by statute or standards the classifying executive has published to the NRS before the classification; a statute prevails over any conflicting executive standard. The classifying authority must state the ground relied on at the time of classification. No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension takes effect when the executive that classified the record publishes a justification to the EM; the EM assesses whether it meets the applicable standard and publishes its finding to the NRS. Within 30 days after classification expires, the NRS Panel publishes the declassified record; this obligation is automatic and requires no further government act. Any person with standing may at any time petition the court designated by statute for release

of a classified record. The court orders release of every portion whose classification is not required to protect national security under a ground consistent with statute and this Constitution; any redactions, and the ground for each, are published with the released portion.

Article XI — NRS Panel and Elections Panel

§11.1 — NRS Panel and Elections Panel

(1) Two constitutionally independent panels — the NRS Panel and the Elections Panel — operate the Republic's permanent record infrastructure and electoral systems respectively.

(2) The Elections Panel establishes and maintains the National Voting System, sets administrative and technical standards for federal elections, certifies election equipment for state procurement, audits state compliance with federal election standards, administers referenda and confirmation votes, and certifies all federal election results.

(3) Each panel is operationally independent of the other, of both executives, and of the Legislature in the exercise of its functions.

(4) Panel members are appointed under §3.9. Each panel must have no fewer than five members at all times. No single appointing authority may hold a majority of appointments to either panel within any single electoral term.

(5) Each panel may adopt temporary technical measures in response to imminent security threats or system failures within its domain, under any procedure statute establishes or, absent statute, by majority vote of its seated members. Such measures may not change electoral rules, timelines, or NRS record permanence, and expire after 72 hours. A panel may adopt a further measure only on a fresh published determination of an imminent threat.

(6) Where either Panel falls below the five-member floor, the remaining members may by majority vote designate qualified civil servants employed by that Panel as Acting members for the period defined by statute, not to exceed 180 days. Where the remaining members are unable to designate, the Civic Consul designates from the same group. Acting members designated by the Civic Consul may not at any time constitute a majority of the Panel's seated membership. An Acting member exercises all authorities of a full member during the designation.

§11.2 — NVS Properties and Voting Rights

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter in a manner that cannot be used to prove to anyone else how they voted), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). Information generated by the NVS, including voter participation records, may be used or shared only to administer, audit, or certify the relevant election or petition, or for judicial review of its results. Eligibility verification may not store or expose voter identity within the NVS. No State may impose requirements or intermediaries that effectively reduce NVS access or impose burdens not present in direct NVS participation. The Elections Panel shall inform every eligible citizen of their federal races and how to vote before each federal election.

§11.3 — State Election Non-Compliance

Where the Elections Panel finds through audit that a State's election administration materially fails to meet the federal election standards under §11.1 or the requirements of §11.2, it publishes the finding to the NRS and notifies the State formally. The State has the period defined by statute to cure the identified failures. Where the finding is made before an election, the Panel may withhold result certification for affected districts pending compliance or a special election under §7.2.a. Where the State does not cure within the cure period, the Elections Panel administers the relevant federal election directly within that State for that electoral period only; State administration then resumes automatically. Neither a finding of non-compliance nor withholding of certification affects the validity of votes cast.

Article XII — Social State and Economic Rights

§12.1 — The Social State

The Republic is a social state. Every Inhabitant is entitled to conditions of life consistent with human dignity, which the Republic fulfills through three mandatory systems: universally accessible healthcare insurance; social assistance sufficient to maintain basic material conditions; and free compulsory education for every child. The Legislature establishes the framework and adequacy standards for each by statute, and the EM assesses those standards annually. A standard may be reduced only by a 2/3 concurrent vote of both chambers or during a certified Severe Revenue Contraction under §12.4. Parents may direct their children's education within public standards.

§12.1.a — The Monetary Authority

The Monetary Authority is a constitutionally mandated institution independent of both executives and the Legislature in the exercise of its constitutional functions, governed by §3.9 except as this section provides. It is responsible for monetary policy, currency issuance, fiscal integrity certification, and the National Endowment functions assigned by this Article. The MA has exclusive authority to issue the Republic's currency; no other body may issue instruments intended to function as legal tender within the Republic. Principal decision-makers exercising the MA's constitutional authority must be selected through an independent candidate process and confirmed by 2/3 of the Senate. No single officer or institution may appoint a majority of the MA's principal decision-makers. Their terms must be staggered so that ordinary electoral turnover cannot replace the entire leadership at once. Disagreement over monetary policy, economic judgment, or a lawful certification is not cause for removal. A vacancy does not suspend or transfer the MA's constitutional functions.

§12.1.b — Monetary Authority Reporting

The Monetary Authority publishes a State of the Economy report to the Assembly, the Legat Consul, and the Civic Consul no less than semi-annually, or more frequently as statute requires.

§12.2 — Fiscal Accountability

(1) The annual budget originates in the Assembly. Each Consul prepares and submits to the Assembly a proposed budget for their respective domain, published to the NRS upon submission, by the deadline defined by statute; absent a statutory deadline, no later than 120 days before the start of the fiscal year. A Consul's failure to submit does not delay or bar the budget process.

(2) The Legislature must pass a balanced budget or publish a justification for a structural deficit, which the MA reviews for fiscal accuracy. A structural deficit above the threshold the MA defines also requires a published plan for return to balance.

(3) Where no budget is enacted by the start of the fiscal year, or any earlier deadline defined by statute, an interim automatic appropriation takes effect by constitutional operation covering:

— judicial operations, active defense authorizations under §14.2, and social state continuity under §12.1;

— civil service compensation;

— funding for the bodies protected under §9.6;

— and debt service obligations.

(4) The interim appropriation continues at the prior fiscal year's inflation-adjusted level until a budget is enacted; no new programs may be initiated or expanded under it.

(5) Where no budget is enacted when the interim appropriation takes effect, the pay of all members of both chambers is withheld from that date and released only upon budget enactment.

(6) The Legislature must fund the National Endowment by appropriation in years of fiscal surplus. The EM assesses compliance annually.

§12.3 — Taxing Power and National Revenue Fund

The Legislature has exclusive authority to levy taxes, duties, and tariffs by statute. States, Territories, and local governments retain authority to tax within their own jurisdictions, subject to §12.5. All public money received by the Republic, other than the National Endowment's assets, is deposited into the National Revenue Fund. No money may be withdrawn from the Fund except by appropriation, including the interim appropriation under §12.2. The EM audits the Fund's receipts and disbursements annually. Tariff rates established by a ratified treaty or approved trade agreement under §3.6 constitute legislatively authorized rates for the duration of that instrument; the Legislature may set tariff schedules within which the Legat Consul may negotiate specific rates.

§12.4 — National Endowment

The National Endowment is a constitutionally established reserve fund that backstops the Republic’s social state obligations under §12.1 during a Severe Revenue Contraction — a decline in national revenue that meets a threshold the Monetary Authority defines and publishes to the NRS before applying it, as certified by the Monetary Authority. The Endowment operates independently of the annual budget process and is managed by the Monetary Authority, whose sole obligation with respect to it is to preserve and grow it for that backstop purpose. On Monetary Authority certification of a Severe Revenue Contraction, disbursements to the National Revenue Fund for social state obligations under §12.1 begin and continue until the Monetary Authority certifies the contraction has ended. Where a certified Severe Revenue Contraction continues beyond 12 months, continued disbursement requires authorization by statute, enacted through the ordinary legislative process and renewed at intervals not to exceed 12 months for the duration of the contraction. Where authorization is not renewed, disbursements cease and any reduction made under the Severe Revenue Contraction exception in §12.1 lapses with them. The Monetary Authority's certification of the contraction's end terminates disbursements and any such reduction regardless of authorization status.

§12.5 — Internal Commerce

No State or Territory may impose requirements on goods, services, or economic activity originating in another State or Territory that are more burdensome than those applied to its own. The Legislature may establish uniform internal commerce standards by statute.

§12.6 — Fiscal Equalization

The Legislature shall by statute establish a mechanism ensuring that every State and Territory has fiscal capacity reasonably sufficient to fulfill the Social State obligations under §12.1 and the rights guaranteed under Article I. The EM certifies annually whether the mechanism is operating as required. Where the EM finds the mechanism is not operating as required, the Legislature publishes its response to the NRS within 90 days.

Article XIII — Direct Democracy

§13.1 — Optional Referendum

(1) Citizens may initiate a national referendum to repeal enacted legislation. A petition must be filed with the Elections Panel within 90 days of enactment and proceeds in two phases, each authenticated through the NVS. Both phases must be completed within 20 months of filing.

(2) Phase One requires signatures from citizens equal to a percentage of eligible voters, defined by statute at not less than 0.5% nor more than 3%, in each of at least one-third of all States and Territories.

(3) Phase Two begins on completion of Phase One and requires signatures from 5% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold.

(4) Laws that solely or primarily expand an Article I right, budget laws, and laws implementing a constitutionally mandated obligation are ineligible.

(5) The Elections Panel determines at filing whether a law is eligible. Any eligibility determination may be challenged in the Appellate Court within 14 days.

(6) If the threshold is met, the Elections Panel administers the referendum within 90 days of verification. A simple majority of votes cast, subject to a turnout threshold defined by the Legislature of not less than 30% and not to exceed 50%, repeals the law immediately upon certification.

(7) A failed referendum or initiative under this Article may not be re-initiated on the same or substantially similar grounds within three years; the Legislature may re-enact a repealed law, which is again subject to referendum.

(8) No statute, rule, fee, deadline, or administrative practice may make a process established by this Article nominally available but functionally prohibitive.

§13.2 — Citizen Legislative Initiative

(1) Citizens may propose legislation directly to the Legislature through the two-phase petition process of §13.1, except that no enactment deadline applies and Phase Two requires signatures from 10% of eligible voters nationally. The Elections Panel determines at filing whether the proposal complies with paragraph (3); that determination may be challenged under §13.1(5).

(2) Once the threshold is verified, if the Legislature does not enact the proposal within 90 days, the Elections Panel administers a direct citizen referendum on it within 90 days after that period ends; passage requires 60% of votes cast with at least 50% citizen participation.

(3) An initiative enacted under this section is subject to this Constitution as any statute is, and may not narrow a right under Article I, appropriate funds, or alter revenue. Disputes are resolved by the SC under §4.5 on petition of any person with standing.

Article XIV — Military Authorization and Accountability

§14.1 — Authorized Purposes for Military Force

Military force may be used only for two purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to crimes against humanity as defined under international law. The Legislature applies that definition directly in each authorization; no prior international recognition or finding is required. Legislative authorization must state which purpose it serves; an authorization that states neither is void. In deciding whether an authorization meets this section, the SC examines only its stated purpose and does not review whether the underlying facts satisfy a purpose's legal threshold.

§14.2 — Defense Authorization and Allocation

Expenditure on military operations requires legislative authorization under §14.1, except for immediate response under §2.2, and appropriation under §12.2, including the interim appropriation; the Legat Consul executes that funding and, within the authorized total, determines allocation except as the authorization specifies. The Legat Consul answers public questions before the Senate at least annually and provides classified briefings to the Senate during active operations. The Legat Consul keeps the Civic Consul informed of expenditure and its budgetary implications through the Council of Ministers under §2.14. When legislative authorization expires or lapses, all expenditure ceases except the wind-down of existing contracts for up to 90 days; no new commitments may be made after expiration. The EM audits expenditure during active operations, including intelligence activities conducted in support of those operations, and publishes a comprehensive accountability report within 180 days of an operation's conclusion.

§14.3 — Transition and Reconstruction Plan

Within the period defined by statute following the second renewal of a legislative military authorization, the Legat Consul submits a Transition and Reconstruction Plan to the Senate specifying the Republic's post-conflict obligations (status of alliance obligations, civilian reconstruction support, and transitional justice support) and a withdrawal timeline. The Senate reviews and approves the Plan, and may amend it. The approved Plan is binding on both executives within their respective domains. The authorization may not be renewed again unless the Senate has approved a Plan.

§14.4 — Treaty-Based Military Authorization

Where an existing treaty requires military action, the Legat Consul may act immediately and must notify both chambers and the Civic Consul within 12 hours, citing the specific treaty obligation triggered. Senate ratification of a treaty constitutes legislative authorization for the military action the treaty requires when its obligations are triggered, provided the action serves a purpose authorized by §14.1; no separate legislative authorization is required. The oversight provisions of §14.2 apply from the moment of action. Treaty-based authorization for an operation lasts up to 12 months from the moment of action; continuation thereafter requires renewal under §2.2, and §14.3 applies on the same terms as for any other authorized operation. On petition of any party with standing, the SC determines whether a treaty's trigger conditions were met and whether particular action falls within the treaty's obligation. Where the SC determines that the trigger conditions were not met or that the action exceeds the treaty's obligation, the action is limited to a defensive posture and ends 30 days after the SC's decision is published unless the Legislature authorizes it under §14.1.

§14.5 — State Forces

A State may maintain organized forces for disaster response, civil emergency, and the preservation of public order within the State. Such forces are subject to Article I.

State forces may be called into federal service only under legislative authorization satisfying §14.1, and only for defense of the Republic against invasion or armed attack or to suppress insurrection against the constitutional order. They may not be employed outside the Republic's territory. While in federal service they are subordinate to federal command.

The Civic Consul may request the assistance of a State's forces within that State, with the consent of the State authority designated by its own constitution, which may withdraw consent at any time.

No State force may be employed against the constitutional order of the Republic, against another State, or to obstruct a federal constitutional function. Composition, training, equipment standards, and the terms of federal call-up are established by statute.

Article XV — Territorial Structure and Statehood

§15.1 — Territorial Compact

A Territory operates under a Territorial Compact: the restructuring agreement under §15.4 or the incorporation agreement under §15.6 where the Territory results from one of those processes, or otherwise a standard statutory framework the Legislature defines. Every Compact must provide for an elected local governing authority over matters of local concern.

§15.1.a — Provisional Status

A State in Provisional status remains a State, and its government and Assembly representation continue without interruption. Sitting senators complete their current terms, but no new Senate term begins for the State while Provisional status continues. The State returns to ordinary State status upon publication of two consecutive biennial Statehood Audits with no material failure finding by any Monitor, and the Elections Panel administers a special election within 90 days to fill any vacant Senate seats.

§15.2 — The Statehood Audit

(1) A Territory's elected governing authority under §15.1 may by resolution request a Statehood Audit for the whole Territory. Alternatively, a citizen petition — signed by a percentage of eligible voters within the Territory defined by statute at not less than 5% nor more than 15%, authenticated through the NVS, and certified by the Elections Panel — achieves the same effect. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria, using the citizen petition mechanism scoped to eligible voters within the subdivision.

(2) Each Monitor conducts the portion of the Statehood Audit within that Monitor's constitutional domain and publishes an individual finding, with any dissent, to the NRS. The audit examines: free, lawful, and competitive elections; functioning constitutional government capable of State responsibilities; effective rule of law and lawful administration; substantial compliance with Article I; and other objective constitutional-capacity criteria established by statute. An overall failed audit requires at least two of the three Monitors to find a material failure within their respective domains. A single material-failure finding is published as a warning requiring remediation but does not constitute overall audit failure. A successful Statehood Audit for the admission requirements of subsections (3) through (5) requires completed findings from all three Monitors with no material failure finding by any Monitor.

(3) Initiation under subsection (1) opens a Statehood proceeding. The Territory must receive a successful Statehood Audit within two years after initiation. If no successful audit is achieved within that period, the proceeding lapses and may be initiated again under subsection (1).

(4) After the first successful Statehood Audit, the Territory remains a Territory. A second successful Statehood Audit must be completed within two years after publication of the first successful audit. A failed audit or warning during that period does not terminate the proceeding; the Territory may achieve the required second successful audit at any time before the deadline. If the second successful audit is not achieved within that period, the proceeding lapses and may be initiated again under subsection (1).

(5) Upon publication of the second successful Statehood Audit, the Territory becomes a State immediately by constitutional operation, subject to §15.5.a where applicable.

(6) Statehood immediately creates two Senate seats. The Elections Panel assigns the two seats by public lot to two distinct existing Senate classes and administers a special election within 90 days. The first senators serve only the remainder of the assigned class terms.

(7) Every State is subject to a biennial Statehood Audit under the same Monitor structure and criteria. Judicial review of any Statehood Audit finding is available for legality, process, jurisdiction, and application of the stated criteria; a court may not substitute its policy judgment for a Monitor's domain assessment.

(8) Where active conflict prevents completion of a biennial audit in a significant portion of a State's territory, the Monitors may publish a provisional audit-status finding for that cycle, which counts as neither a passing nor a failed audit. A provisional audit status is unavailable where the State materially contributed to the conflict conditions.

§15.3 — State Remediation and Mandatory Devolution Review

(1) An overall failed biennial Statehood Audit under §15.2 places an existing State on the mandatory remediation track. A first consecutive failed audit produces an Early Warning and requires the State to publish a Remediation Plan within the period defined by statute; until such statute is enacted, the period is 90 days. A second consecutive failed audit produces a renewed Early Warning and requires a revised Remediation Plan. A passing audit before a third consecutive failure breaks the sequence.

(2) Upon a third consecutive failed audit, the Monitors certify the audit sequence to the Senate. The Senate must vote within the period defined by statute, not to exceed 90 days from certification, on whether to place the State in Provisional status under §15.1.a. Entry into Provisional status requires an absolute majority of the full seated Senate and takes effect immediately by constitutional operation. If the Senate rejects the motion, the State remains on the remediation track, and a subsequent failed biennial Statehood Audit requires a new certification and Senate vote.

(3) If the Senate does not vote within the required period, the question becomes privileged Senate business and the Senate may not take up non-emergency business until the vote occurs.

(4) When the first sitting senator's term expires after the State enters Provisional status, the Elections Panel administers a citizen referendum on whether to pursue devolution under §15.4. If the referendum does not approve devolution and the State remains in Provisional status, the Elections Panel administers another referendum at two-year intervals thereafter.

(5) The Monitors' certification and the State's entry into Provisional status are reviewable on the grounds stated in §15.2(7); the Senate's vote under paragraph (2) is not.

§15.4 — Voluntary Devolution and Merger

(1) A State may pursue devolution by a State referendum approving it by 60% of votes cast with participation by at least 50% of eligible voters. The referendum required by §15.3(4) is this referendum. Upon approval, the State and the Legislature negotiate a restructuring agreement, which takes effect upon ratification by 2/3 of the full seated Senate. The agreement is legally binding and specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, fiscal obligations to the Republic, and continuing obligations.

(2) The State retains its existing status, ordinary or Provisional, until the restructuring agreement takes effect, when it becomes a Territory.

(3) A Territory or a defined portion of a Territory may merge with a geographically contiguous existing State. Merger requires a referendum approving it by 60% of votes cast with participation by at least 50% of eligible voters, approval by the existing State through its own constitutional process, a joint LM-JM assessment confirming that the existing State's constitutional integrity is maintained, and ratification by a simple majority of the Senate. The referendum is triggered by a petition signed by citizens equal to a percentage of eligible voters within the Territory or defined portion, set by statute at not less than 5% nor more than 15%, authenticated through the NVS and certified by the Elections Panel. The petition period may not exceed 12 months.

(4) Following certification of a referendum under this section, any party with standing has 30 days to challenge the process or result. After that period, no challenge may be filed, and the next step proceeds upon the expiration of the period or the resolution of any challenge.

§15.5 — Re-Qualification Pathway

A Territory resulting from devolution is deemed to have requested a Statehood Audit under §15.2(1) on the effective date of devolution. Where a defined geographic subdivision of the Territory achieves Statehood under §15.2 or merges with an existing State under §15.4, the remainder continues as a Territory.

§15.5.a — Remainder Viability

(1) Where two or more petitions under §15.4 or §15.2 affecting different defined portions of the same Territory are certified within 90 days of one another, they are addressed together under paragraph (3).

(2) Where paragraph (1) does not apply, the JMC must assess within 90 days of certification whether the Territory's remaining portion could realistically satisfy the conditions of the §15.2 Statehood Audit on its own administrative and economic resources, and publish the assessment to the NRS before the referendum is held or the subdivision acquires Statehood. Statehood proceedings remain subject to the deadlines in §15.2. The JMC may extend the period once, by up to 30 days, upon publishing a justification. If the JMC does not publish its assessment within the period, including any extension, the remaining portion is treated as not satisfying those conditions.

(3) Where paragraph (1) applies, or where the JMC finds the remaining portion could not realistically satisfy those conditions, the underlying referendums or Statehood certifications do not proceed. The Civic Consul convenes a Territory Convention, composed of the Assembly members representing districts within the Territory, which has 90 days from its first session to produce a proposed resolution addressing all affected portions together. If no resolution is produced within that period, all petitions addressed under this paragraph lapse together, the Territory continues undivided, and none of them may be reinitiated under substantially the same geographic scope for three years. A resolution the Convention produces must be ratified by referendum of the eligible voters it affects and then proceeds under the applicable process of §15.2 or §15.4.

§15.6 — Voluntary Incorporation

(1) A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The petition requires a resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving a simple majority on at least 50% participation. Upon confirmation, the entity and the Legislature negotiate an incorporation agreement specifying a transition period not exceeding 48 months, which the Legislature ratifies by 2/3 of both chambers.

(2) Either chamber may request a JM assessment of the entity's compliance with §1.19.a before the ratification vote; published JM findings must be given due consideration. Any person with standing may challenge the incorporation before the SC on the ground that the entity systematically violates §1.19.a, within 30 days after ratification.

(3) No constitutional officer may induce or coerce an entity to initiate or advance this process.

§15.7 — State Immutability and Territorial Integrity

A State's constitutional boundaries are fixed except as provided in this Article. A State divides only through devolution under §15.4, and each successor jurisdiction proceeds as a Territory. The Republic's territorial extent may be reduced only by the consent of the affected population, through a parliamentary amendment with Popular Ratification or a citizen initiative amendment. A founding status election under §16.2 during the Transition Window, or a completed process under §15.9 including its national referendum, satisfies this consent requirement without further amendment or Popular Ratification.

§15.7.a — Reversion to the States and Territories

If §2.9.a(6) applies, §15.7 does not apply, and the States and Territories are sovereign governments that may act as such, including by reconstituting the Republic. The rights in §1.19.a continue to bind every government.

§15.8 — Local Government

Cities, counties, municipalities, and other local subdivisions receive constitutional recognition and are entitled to reasonable fiscal, legal, and administrative capacity to carry out the lawful functions assigned to them.

§15.8.a — Subsidiarity and Local Capacity

(1) Public functions not expressly assigned by this Constitution to the Republic or another constitutional institution shall be exercised at the most local level of government reasonably capable of performing them effectively and consistently with this Constitution.

(2) States retain authority to allocate ordinary governmental functions between State and local governments consistent with subsection (1), Article I, and §15.8.

(3) Responsibility may move to a higher level of government where the lower level lacks reasonable capacity to perform the function, materially fails a constitutional or lawful minimum standard applicable to it, the matter produces material effects across jurisdictions that cannot reasonably be resolved at the lower level, or coordination at the higher level is reasonably necessary to discharge an express constitutional obligation. Federal action additionally requires an independent source of federal competence under §3.10.

(4) Action by a higher level under subsection (3) shall be limited to the scope and duration reasonably necessary to address the incapacity, failure, cross-jurisdictional effect, or coordination need. Responsibility returns to the lower level when that justification no longer exists, except where lawfully reassigned under an independent constitutional authority.

(5) No higher level of government may create or maintain lower-level incapacity through systematic denial of the fiscal, legal, or administrative means reasonably necessary to perform an assigned function and then rely on that incapacity as grounds for centralizing the function.

§15.9 — Voluntary State Independence

(1) A State may seek independence from the Republic through three stages. Stage One requires the State legislature to resolve by 2/3 majority to submit the independence question to the State's eligible voters; the referendum must achieve 60% of votes cast with at least 60% participation among the State's eligible voters. A failed referendum may not be reinitiated on the same or substantially similar grounds for five years.

(2) Upon certification of the referendum result, the Elections Panel publishes the independence petition to the NRS; the State may not withdraw the petition while the process continues.

(3) No constitutional officer may induce or coerce a State to pursue or abandon an independence petition or referendum. The Republic must provide factual information about the process upon request.

(4) Stage Two requires both chambers to hold a concurrent ratification vote within 90 days of NRS publication. Assembly members elected from districts within the petitioning State and senators elected from the petitioning State are recused from this vote, and the required 2/3 majority and quorum for each chamber are calculated from the remaining seated members. If either chamber fails to achieve 2/3 or fails to vote within 90 days, the petition lapses.

(5) Stage Three requires a national referendum administered by the Elections Panel within 180 days of the Stage Two vote, in which all eligible voters of the Republic, including those of the petitioning State, participate. Independence is approved by 60% of votes cast under §7.3 with at least 55% citizen participation. If the referendum fails, the petition

lapses.

(6) A State whose petition lapses at Stage Two or Stage Three may reinitiate Stage One without restriction.

(7) Upon certification of an affirmative Stage Three result, the State and the Legislature negotiate a separation agreement specifying asset and liability allocation, borders, transition timeline, fiscal obligations, and continuing obligations, ratified by the Senate by 2/3 of full seated membership; independence takes effect on the date the agreement specifies.

§15.10 — State Government Incapacity

Where a State's constitutional government has become incapable of exercising governmental authority and cannot be restored through its own constitutional continuity mechanisms, the Legislature may by statute authorize the Republic to temporarily administer only those functions necessary to preserve rights, essential services, and restoration of democratic State government. Command of State forces under §14.5 not otherwise in federal service passes to the temporary administration for its duration. Temporary administration ends automatically when constitutional State government is restored.

Article XVI — Indigenous Sovereignty

§16.1 — Acknowledgment of Prior Sovereignty and Recognition

Indigenous nations hold sovereignty that precedes the Republic. This sovereignty is acknowledged, not granted, and the Republic may not extinguish it. The Republic deals with recognized indigenous nations as sovereign nations. A recognized indigenous nation, wherever that term appears in this Constitution, means a nation that, as of Day Zero, held a treaty with, a compact with, or formal recognition from a predecessor government, or a nation recognized under §16.4. A nation omitted from the founding register may appeal to the SC within the period defined by statute on the sole ground that the predecessor record was misapplied. Recognition confers no territorial rights of itself.

§16.2 — Founding Status Election

(1) At ratification, the Republic formally notifies every nation on the founding register of its rights under this section.

(2) From Day Zero until the close of the Transition Window under §19.2, each recognized nation may elect, through its own lawful democratic or traditional governance process for major governance decisions, either: (a) Associated Community — continuing as a fully sovereign political community in a consensual compact relationship with the Republic under Article XX; or (b) Territorial Integration — entering the Republic as a Territory under §15.1, with the ordinary §15.2 Statehood pathway available. A Territorial Integration election constitutes the petition and confirmation otherwise required by §15.6, and the nation and Legislature proceed directly to negotiation of an incorporation agreement ratified by 2/3 of both chambers. A recognized nation that independently qualifies for a founding direct-State entry under Article XIX may use that transition mechanism while it remains available.

(3) If a recognized nation makes no status election during the Transition Window, the Republic treats it as an Associated Community pending conclusion, confirmation, or replacement of a compact under Article XX. That interim treatment is not consent to compact terms the nation has not accepted.

(4) No constitutional officer may induce or coerce a nation to elect either status. The Republic must provide factual information upon request.

(5) Article I applies within the territory of each recognized nation throughout the Transition Window unless the nation, through its own lawful governance process, positively rejects that application and publishes the decision to the NRS. After the Transition Window, §20.3 governs an Associated Community and the ordinary Constitution governs a nation that elected Territorial Integration.

(6) While Article I applies under subsection (5), any resident who believes an Article I right has been violated may bring an Emergency Rights Writ directly to the SC under its original jurisdiction in §4.5; the SC must rule within 7 days.

(7) Indigenous nation membership and Republic citizenship are compatible and independent statuses.

(8) Election of Territorial Integration permanently ends the founding Associated Community or compact status under this section. If the community later becomes a sovereign independent nation, any future Associated Community relationship requires a new compact under Article XX.

§16.3 — Treaty Supremacy and Continuity

(1) All treaties entered into by predecessor governments with indigenous nations are binding obligations of the Republic, regardless of the nation's status under this Constitution. Legislation cannot diminish treaty rights. A treaty may be renegotiated or superseded only by mutual agreement, negotiated between the Legat Consul and the nation and ratified by the Senate under §3.6.

(2) Where a treaty's administration depends on a predecessor-government institution or mechanism with no Republic equivalent, the Legat Consul and the nation must begin discussions within the Republic's first year to identify an analogous Republic institution or a negotiated substitute mechanism. Pending resolution, a ministerial counterpart designated by the Legat Consul administers the treaty's institutional functions on an interim basis.

(3) The EM audits the Republic's compliance with its treaty obligations under this section annually.

§16.4 — Post-Founding Recognition

(1) A people asserting sovereignty preceding the Republic may submit a claim of prior sovereignty to the JMC at any time after the close of the Transition Window; the claim is published to the NRS. The JMC investigates the claim against the predecessor record and the criteria of §16.1.

(2) Claimants may present the published findings in a petition for recognition to the Legat Consul. Where a petition for recognition is submitted, the Legat Consul determines it within the period defined by statute, not to exceed 180 days, with written grounds whether recognition is granted or declined. A declined petition may be resubmitted after 5 years or upon a material change in the available record.

(3) Recognition under this section activates the Republic's obligations under §16.3, establishes the nation as a collective legal person capable of negotiating with the Republic and entering arrangements under statute and §18.4, and constitutes the factual predicate for any subsequent constitutional amendment under Article XVII concerning the nation's territorial or sovereign status.

§16.5 — Transition of Existing Arrangements

(1) Existing arrangements between a recognized nation and the predecessor government continue provisionally from Day Zero until replaced by an Article XX compact, an incorporation agreement under §16.2, or a treaty instrument under §16.3. Either party may petition the SC to resolve specific disputes arising within the provisional framework.

(2) For a nation holding Associated Community status, the Republic must open compact negotiations under Article XX within 90 days of the status taking effect and negotiate in good faith.

Article XVII — Constitutional Amendments

§17.1 — Amendment Paths

(1) This Constitution may be amended through the parliamentary path or through citizen initiative. Every member's vote on any amendment is published to the NRS.

(2) A parliamentary amendment requires 2/3 of the full seated membership of both chambers. The proposing body simultaneously specifies the ratification mechanism — either State Ratification (ratification by 2/3 of States within the period defined by statute; until such statute is enacted, 180 days) or Popular Ratification (a national popular referendum achieving 2/3 of votes cast with at least 55% citizen participation within 180 days).

(3) A Citizen Initiative Amendment proceeds through the two-phase petition process of §13.1, except that no enactment deadline applies and Phase Two requires signatures from 15% of eligible voters nationally. Once the Phase Two threshold is verified, the Elections Panel administers a national referendum within 180 days. Passage requires 70% of votes cast with at least 65% citizen participation. An initiative that fails may not be resubmitted on the same or substantially similar grounds for five years.

(4) Amendment of the following provisions requires Popular Ratification regardless of the amendment's origin: the Monitor selection mechanisms and independence protections (§9.2–§9.4), the Monitor information-only mandate and non-dependency principle (§9.1), the Monitor funding guarantee (§9.6), the NRS architecture and permanence requirements (§10.1), the Elections Panel and NRS Panel independence (§11.1), the designation of non-derogable rights (§1.19.a) and the limit on amendments extinguishing them (§17.3(3)), the reversion of authority to the States and Territories (§15.7.a), and this subsection. A Citizen Initiative Amendment satisfies this requirement through its own referendum under paragraph (3).

§17.2 — No Executive Veto; Amendment Takes Effect

No Consul signature or veto applies to an amendment. An amendment takes effect upon certification of its ratification — by the LM for State Ratification, otherwise by the Elections Panel — and NRS publication.

§17.3 — Amendment Consistency and Supremacy

(1) An amendment inconsistent with an existing provision is void to the extent of the inconsistency unless it expressly repeals or amends that provision.

(2) The JM publishes a consistency analysis of any proposed amendment within 30 days of passage by both chambers for a parliamentary amendment, or within 30 days of Elections Panel Phase Two threshold verification for a citizen initiative amendment. No ratification vote on a parliamentary amendment may be held before the JM's analysis is published or the 30-day period expires, whichever occurs first.

(3) The SC resolves disputes over a ratified amendment's consistency under §4.5 on petition of any person with standing. It may not refuse to apply an amendment that has met its procedural thresholds, except that an amendment extinguishing a right designated non-derogable under §1.19.a is void to the extent of the extinguishment.

(4) Amendments operate prospectively — they do not retroactively alter the constitutionality of acts that were constitutional when performed.

(5) A proposed amendment may be withdrawn at any point before ratification is certified.

§17.4 — Supremacy of This Constitution

This Constitution is the supreme law of the Federated Republic. Any legislative act, executive order, treaty, administrative decision, or other government action inconsistent with this Constitution is void to the extent of the inconsistency.

Article XVIII — Federal Property and National Trust

§18.1 — The Use Doctrine

The federal government holds no territorial sovereignty within any State or Territory. All federal property rights are functional use rights: operational control over a designated footprint for the duration of the stated function, ending when the function ends. Every use right must be registered on the NRS with precise geographic boundaries, authorized purpose, and termination conditions. A federal land claim that is not registered is void. Disputes over registration validity are resolved under §18.3.

§18.2 — Seat of Government

The Seat of Government is hosted by a State or Territory selected through a competitive process defined by statute, in which any State or Territory may bid. A selected host must satisfy minimum requirements published to the NRS in advance of the selection. A State or Territory whose bid is rejected may challenge the selection before the SC, within 30 days of selection, on the ground that the selected bid did not satisfy the published requirements. The hosting arrangement grants the federal government Operational Use Rights over the designated footprint under §18.1. Federal control within the footprint is exclusive: the host may not tax federal operations or apply its own law to federal functions within the footprint.

§18.3 — Operational Use Rights

When a federal function ends, the federal government must publish notice of termination of the Operational Use Right to the NRS within the period defined by statute, not to exceed 90 days. The land and all improvements revert to the host State automatically unless the federal government and host State negotiate a retention agreement within the statutory reversion window. Disputes over use right boundaries, termination, registration validity, or improvement valuation go to the SC on an expedited track; neither party may occupy or alter disputed land during pending resolution.

§18.4 — The National Trust

(1) The National Trust holds all federal land not conveyed by statute to States, recognized indigenous nations, or private parties. Land disposal and encumbrance require statute.

(2) National Trust designation requires a 2/3 vote of both chambers with host State consent. Removal from Trust designation requires the same 2/3 legislative threshold plus a national referendum administered by the Elections Panel within 180 days of the legislative vote, achieving 60% of votes cast with a minimum 50% citizen participation. International conservation agreements require a 2/3 Senate vote to withdraw before the national removal process begins.

(3) Land designated National Trust carries an active stewardship obligation: the federal government must maintain ecological integrity and public accessibility. The EM monitors compliance annually, cross-referenced with §1.18.

(4) States and indigenous nations may enter co-management agreements with the Civic Consul for National Trust lands within their borders or ancestral territories.

§18.5 — Federal Property in Territories

(1) Sections 18.1 and 18.3 apply to federal operational use rights in Territories as they do in States.

(2) For a Territory, host State consent under §18.4 is replaced by a written position of the Territory's representative body, published to the NRS within 60 days of the proposed designation. If no position is published within 60 days, designation may proceed.

Article XIX — Transition and Ratification

§19.1 — Activation Threshold and Ratification

This constitution takes effect upon: (1) interim Elections Panel certification that the NVS is operational and meets §11.2; and (2) a national ratification vote achieving 60% of votes cast with at least 50% participation. Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt as specified in the treaty of union, subject to the constitutional principles of this Article. Where the ratifying polity maintains existing institutions overlapping with constitutional mechanisms, the Legislature must by statute within two years of Phase 4 define their relationship; accommodation statutes may not reduce the legal standing of pre-existing governance structures below their pre-Phase 4 status.

§19.2 — Day Zero and Transition

(1) Day Zero is the date the ratification threshold is certified as achieved. Upon ratification, all laws conflicting with the Individual Sovereignty Floor are immediately null and void; all public assets, liabilities, rights, and obligations of the predecessor national government vest in the Republic by constitutional operation subject to this Constitution, and the authoritative records necessary to establish them are transferred or registered to the NRS as provided by law; and the 24-month Transition Window begins.

(2) The constitution is implemented through a four-phase transition: Phase 0 — pre-ratification preparation, during which the interim Elections Panel is constituted, the NVS certified operational, and the joint Monitor panel formed; Phase 1 — Emergency Stabilization (Days 1–90), during which predecessor national officials whose authority is displaced or superseded serve as caretakers; Phase 2 — Institutional Construction (Days 91–270), during which transition status determinations and any required Statehood Audits are conducted, Monitors formally constituted, and the NVS fully deployed; Phase 3 — First Elections (Days 271–450), encompassing the first federal electoral period and inaugural executive and judicial appointments; Phase 4 — Full Constitutional Operation, beginning the day the first Legislature convenes and the first executives take the constitutional oath.

§19.3 — Caretaker Status

(1) Officials and institutions of the predecessor national government whose authority is displaced or superseded by this Constitution continue during the Transition Window only in caretaker capacity as necessary to preserve lawful government, existing services, rights, obligations, and public safety. Existing State, territorial, indigenous, and local governments continue under their own lawful authority except to the extent this Constitution expressly provides otherwise.

(2) A caretaker legislature may enact only measures reasonably necessary for continuity, rights, existing obligations, public safety, or implementation of this Article. A measure intended to continue after Phase 4 remains subject to continuation, amendment, or repeal by the first Legislature. Legislation enacted outside these limits is void, and any Inhabitant may challenge such legislation before a court of competent jurisdiction.

(3) A joint Monitor panel of one representative per Monitor monitors the transition and publishes its findings; the panel dissolves automatically at the Transition Window's conclusion. During Phase 0, before Monitor Generals are constituted, the interim Elections Panel constitutes the panel from a pre-qualified pool established by the ratification convention; from Phase 2, each Monitor General appoints their representative to the panel for the remainder of the Transition Window.

§19.3.a — Transition National-Defense Continuity

(1) Until the Legat Consul and Legislature are constitutionally capable of exercising their respective national-defense authorities, predecessor national institutions continuing under §19.3 may exercise only the military and defense authority reasonably necessary to defend the Republic, its territory, population, and forces against actual or imminent invasion or armed attack, or to carry out military action specifically required by an inherited treaty obligation that remains binding under §19.5(4).

(2) Existing predecessor military command arrangements, defense appropriations, and military authorities remain provisionally effective only to the extent reasonably necessary for action authorized by subsection (1). New commitments extending beyond the Transition Window may be made only where reasonably necessary to conduct or sustain that action and remain subject to alteration or termination by the competent constitutional authorities once constituted.

(3) Until the Legislature is constitutionally capable of exercising its authority, a predecessor national authority exercising caretaker command under subsection (1) may call State forces into federal service without the legislative authorization §14.5 otherwise requires, but only to the extent reasonably necessary for defense against invasion or armed attack.

(4) Defensive action under subsection (1) may occur outside the Republic's territory where reasonably necessary to repel, disrupt, or terminate the invasion or armed attack. This section does not authorize acquisition of territory or hostilities unrelated to the defense or inherited treaty obligation that justified the action.

(5) Invocation of authority under this section, and the constitutional basis for it, must be published to the NRS as soon as operationally practicable. Operational details may be classified only under Article X. The joint Monitor panel monitors action under this section and has access to the records necessary to assess constitutional compliance.

(6) As each constitutional officer or institution ordinarily responsible for a function governed by this section becomes constitutionally capable of exercising that function, the corresponding authority transfers immediately by constitutional operation and caretaker command or decisional authority ends to that extent. A military operation begun under this section may continue under its transition authorization for no more than 60 days after the Legislature first becomes constitutionally capable, unless the Legislature earlier authorizes continuation under §2.2 or directs cessation; within 14 days after taking office, the Legat Consul must submit the operation for legislative authorization or begin orderly cessation. Defense appropriations preserved under subsection (2) remain available for such continuing operations until superseded by a constitutional budget or other lawful appropriation.

§19.4 — Pre-Constitutional Classified Documents

Predecessor classified material is subject from Day Zero to the standards of Article X. The Legislature must establish an independent review mechanism within 90 days of Phase 4 activation to apply those standards systematically. Material that does not satisfy Article X must be declassified and published to the NRS. Until the permanent mechanism is operational, a lawful temporary mechanism exercises only the review authority necessary to apply Article X and preserve access to review. Any Inhabitant may obtain Supreme Court review of a determination concerning predecessor classified material.

§19.5 — Pre-Existing Obligations

(1) Active military operations of the prior government continue under existing authorization until the §2.2 military authorization framework can apply; the Legat Consul, once inaugurated, must assess each active operation against the authorized purposes under §14.1 and either link it to legislative authorization within 14 days or begin orderly cessation; operations not so linked within 60 days cease unless the Legislature grants a one-time authorization.

(2) Social insurance programs continue uninterrupted during the Transition Window.

(3) Benefit obligations to persons who served in military or national service under the prior government are honored; the Legislature must provide for their administration by statute within the first budget cycle following Phase 4.

(4) The Republic succeeds to and shall act as the legal continuation of the prior government in its international relations; all international obligations, financial commitments, treaty relationships, and contractual obligations of the prior government are assumed as successor sovereign. Where an assumed international obligation conflicts with this constitution, the Republic is bound to renegotiate or formally supersede the obligation through the treaty process under §3.6; until that process is complete, the obligation is honored to the minimum extent required by international law without requiring any constitutional officer to violate Article I or any non-derogable right under §1.19.a.

(5) From Day Zero, an independent judicial forum must remain continuously available for Article I claims arising from the nullification or displacement of predecessor law. A temporary judicial mechanism may exercise only the authority necessary to preserve constitutional rights and ends automatically when the permanent judiciary is constitutionally capable of exercising the relevant jurisdiction.

§19.6 — Transition Territories

(1) Political entities that held recognized State or equivalent status immediately prior to ratification and choose to enter the Republic as States become full States for all constitutional purposes from Day Zero, including constituting the Senate and seating their legislators.

(2) All prior government territories that had not achieved statehood by Day Zero enter as Territories from Phase 4 activation; any capital district or special administrative region is assigned Territory status and follows the §15.2 path.

(3) A territory or subdivision whose entry status depends upon qualification during the Transition Window may instead seek State status through a Statehood Audit completed by the end of Phase 2. An entity that does not achieve the required audit enters as a Territory and may begin the ordinary Statehood pathway under §15.2 immediately.

(4) Any territory may choose Territory status by simple legislative vote regardless of whether it meets the Statehood Audit.

(5) Prior government states or territories may voluntarily subdivide during the Transition Window by vote of their existing legislative body; new subdivisions are treated as separate petitioning entities.

(6) The biennial Statehood Audit under §15.2 applies to every State from the first full audit cycle following Phase 4 activation.

§19.7 — Transition Candidate Registers

The joint Monitor panel assembles the initial Candidate Registers for constitutionally established positions before Phase 3 elections can occur. It also compiles the founding register of recognized indigenous nations under §16.1 from the predecessor record and publishes it to the NRS before the close of Phase 1; compilation is ministerial and applies the predecessor record as it stands. Registers assembled by the panel are valid, and the Legislature continues them through the first budget cycle after Phase 4. The panel performs interim Monetary Authority certification functions from Phase 4 activation only until the Monetary Authority is constitutionally constituted and capable of performing those functions under §12.1.a. Initial MA staffing and selection must comply with §12.1.a.

§19.8 — Transitional Accountability Mechanism

Where a ratifying polity’s predecessor government has documented constitutional violations, the Legislature may by statute passed by 2/3 of both chambers establish a Transitional Accountability Mechanism. Such a mechanism must be time-limited — not to exceed ten years in duration — non-criminal, and consistent with Article I. The establishing statute defines the scope, procedures, and duration, and no amending statute may expand the scope without the same 2/3 majority. No new Mechanism may be established within ten years of the sunset of a prior one.

§19.9 — Required Institutions and Temporary Continuity

(1) Where this Constitution requires a statutory independent agency or other permanent institution to perform a specific constitutional function, the Legislature must establish the permanent institution within the statutory period and the following constitutional maximums from Phase 4 activation: the civic proficiency assessment administrator under §5.1, 180 days; the census agency under §3.2, 18 months; and a constitutionally capable Monetary Authority under §12.1.a, 180 days.

(2) A lawful temporary substitute may perform only the functions necessary to preserve constitutional continuity or rights until the permanent institution is capable of performing the function, when the substitute's authority ends automatically. A missed constitutional maximum is immediately justiciable; a court of competent jurisdiction may compel the responsible actors and may authorize only those temporary measures necessary to preserve continuity or rights.

(3) The Legislature must by statute establish the transition from predecessor voting infrastructure to the constitutionally required NVS, ensuring no gap in democratic participation.

§19.10 — Founding Senate and Judicial Classes

(1) At the first Senate seating, senators are assigned to three approximately equal cohorts by public lot: the first cohort serves an initial term of two years, the second four years, the third six years; thereafter all Senate terms are six years. The lot is conducted by the Elections Panel and published to the NRS before the first senators take the constitutional oath.

(2) At founding, the initial Supreme Court justices are assigned as evenly as practicable by public lot administered by the Elections Panel to three classes. The first class serves an initial term of four years, the second an initial term of eight years, and the third an initial term of twelve years. Thereafter terms follow §4.3 and §4.4. Founding service under this subsection constitutes the justice's single term for purposes of those provisions.

Article XX — Associated Communities

§20.1 — Nature of Associated Community Status

An Associated Community is a sovereign political community that remains outside the Republic in a consensual compact relationship with it under this Article. Associated Community status is available to recognized indigenous nations under §16.2 and to any independent nation outside the Republic.

§20.2 — Compact Terms and Equal Sovereignty

The Republic and an Associated Community are equal parties to the compact. Observer delegates of the Associated Community may attend and speak at Assembly and Senate proceedings relevant to the compact, without a vote. The Republic may not condition a compact on the Associated Community's adopting any particular governance structure.

§20.3 — Compact Conditions and Compliance

(1) No compact may be entered or ratified with an entity whose governance practices include, authorize, or systematically permit violations of the non-derogable rights in §1.19.a against any person within its jurisdiction.

(2) Where the JM finds systematic violations of §1.19.a rights, or any party challenges a compact on those grounds, the compact is suspended pending review through its independent arbitration mechanism. The arbitration panel must issue a preliminary determination within 90 days of suspension; if it does not, the suspension lifts and the compact resumes pending the panel's final determination.

(3) The arbitration panel may terminate a compact on confirmed violations not remedied within the period the compact specifies.

(4) Where an Associated Community's territory includes indigenous nations with pre-existing governance relationships, the compact must address them and may not require their governance arrangements to be eliminated or diminished.

(5) During suspension, the Associated Community's observer delegate participation rights are suspended; all other compact obligations of both parties continue pending the panel's final determination.

§20.4 — Sovereign Mobility

The Associated Community may at any time, by its own democratic or traditional governance process, elect to terminate the compact. The Republic may not condition or penalize that decision. Termination takes effect on the date stated in the community's written notice to the NRS, which must be at least 12 months after publication. The community may withdraw its notice before termination takes effect, and the compact then continues.

§20.5 — Reciprocal Obligations and Review

The compact must specify the reciprocal obligations of both parties, a schedule of regular reviews, and an independent arbitration mechanism. Either party may request an additional review by written notice to the NRS.

§20.6 — Compact Ratification

The Legat Consul negotiates and concludes compacts with Associated Communities, consults the Civic Consul, and submits each concluded compact to the Senate for ratification under §3.6 together with any Civic Consul response. The Civic Consul's response is advisory.

§20.7 — Compact Continuity

A compact in force continues to bind the Republic through any change of government or of the Republic's constitutional arrangements. A new government may seek renegotiation only through the process the compact specifies.